UNITED STATES BANKRUPTCY COURT
MIDDLE DISTRICT OF PENNSYLVANIA

LOCAL BANKRUPTCY RULES

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PART I
COMMENCEMENT OF CASE; PROCEEDINGS RELATING TO PETITION AND ORDER FOR RELIEF

Rule 1001-1 *Local Rules - General.*

(a) *Scope.* The Local Bankruptcy Rules and Local Bankruptcy Forms are adopted to govern the practice and procedure before the United States Bankruptcy Court for the Middle District of Pennsylvania.

(b) *Short Title.* These rules may be cited and referred to as the Local Bankruptcy Rules (or "L.B.R.") and the forms as the Local Bankruptcy Forms (or "L.B.F.").

Rule 1002-1 *Petition - General.*

(a) *Unsigned Petition.* The clerk must accept for filing any petition in bankruptcy. If a petition is not signed by either the petitioner or counsel, a signed document must be filed within seven (7) days or the petition may be dismissed. The clerk will notify the party of the deficiency and the deadline by which the deficiency must be cured.

(b) *Petition Submitted by Facsimile.* A petition may not be filed by facsimile unless prior approval has been obtained from the Court. The Court will not approve a filing by facsimile except in an emergency, as determined by the Court.

Rule 1006-1 *Fees - Installment Payments and Waiver.*

(a) *Petitions.* If a petition is filed without the required fee, without an application to pay in installments (Official Form B103A), and without a request for waiver (Official Form B103B), it is considered deficient and may be dismissed after a hearing on notice pursuant to F.R.B.P. 1017(b)(1).

(b) *Other Filings.* The clerk must accept all pleadings for filing regardless of whether the fee required by the Bankruptcy Court fee schedule is paid. If the required fee is not paid at the time the pleading is filed, the clerk will notify the filing party that the party has seven (7) days to pay the fee or the pleading may be stricken by the Court. Current information regarding fees and the number of copies required by the clerk may be found on the Court's website (www.pamb.uscourts.gov).

Rule 1007-1 *Lists, Schedules, Statements, Plans, and Other Documents.*

(a) *Motion.* A motion for an extension of time to file lists, schedules, statements, plans, or other required documents must be filed with the Court within fourteen (14) days of the entry of an order for relief or before any previously granted extension expires. If the motion is untimely, the Court may deny the motion and dismiss the case. The motion must state why the extension is needed and be served on the unsecured creditors' committee and any examiner, if one has been appointed.

(b) *Objection to Extension.* An objection to an extension of time must be filed within seven (7) days of service of the motion requesting the extension.

(c) *Certification of No Payment Advices.* If a debtor has not received payment advices, or other evidence of payment received, from any employer of the debtor within 60 days before the date of the filing of the petition, debtor must file a certification (L.B.F. 1007-1(c)) within the time specified in F.R.B.P. 1007(c). Nothing in this rule is intended to create an exception to the requirements of 11 U.S.C. § 521 or F.R.B.P. 1007.

Rule 1007-2 *Mailing List or Matrix.*

(a) *Form of Mailing Matrix.* Mailing matrices must be prepared so that each entity and address is contained within five (5) lines, with each line not exceeding forty (40) characters (including spaces).

(b) *Non- CM/ECF Users.* The list of creditors must be prepared using the clerk's online creditor matrix service found on the clerk's website or prepared in accordance with the guidelines specified at http://www.pamb.uscourts.gov/mandatory-creditor-listmatrix.

(c) CM/ECF filers must comply with the instructions found on the Court's website (www.pamb.uscourts.gov) when entering the matrix docket event and uploading creditors into the ECF system in lieu of filing a paper matrix.

(d) *Accuracy of Mailing Matrix.* The debtor is responsible for the accuracy and completeness of the mailing matrix. If debtor's counsel or a pro se debtor is notified by the Bankruptcy Noticing Center (BNC) that a document was not served on a party because of an incorrect address, counsel or the pro se debtor must notify the clerk in writing of the correct address and must re-mail the notice to the affected party.

Rule 1007-3 *Summary of Your Assets and Liabilities and Certain Statistical Information.*

A debtor must timely complete and file the Summary of Your Assets and Liabilities and Certain Statistical Information (Official Form 106Sum).

Rule 1009-1 *Amendments to Voluntary Petitions, Lists, Schedules, and Statements.*

(a) *Notice.* An amendment to a voluntary petition, schedule, or statement must be served on any official committee and any affected entity or creditor. The debtor must file a certification that service has been made on these parties.

(b) *Requirements*. An amendment must contain:

(1) the caption of the case;

(2) the case number; and

(3) a title including the word "AMENDED" or "AMENDMENT."

(c) *Form.* An amendment to a schedule or statement must be filed in a format similar to the original Official Form and include only the additions or deletions to the schedule or statement. The change must be prefaced by the statement: "ADD" or "DELETE." An entire set of statements and schedules should not be refiled.

(d) *Electronically Filed Amendments.* Debtor's counsel must comply with the instructions found on the Court's website (www.pamb.uscourts.gov) regarding uploading any new creditors into the ECF system.

Rule 1015-1 *Joint Administration/Consolidation.*

(a) *Joint Administration.*

(1) *Motion.* A request for joint administration must be made by motion. For each case subject to the motion, movant must serve the motion and notice of the answer date on:

(A) the debtor;

(B) all secured creditors;

(C) all parties in interest who have filed a request to receive copies and notices; and

(D) any creditors' committee. If there is no creditors' committee, then the motion must be served as specified in F.R.B.P. 1007(d).

(2) *Passive Notice.* Notice of the filing of a motion for joint administration must provide for a twenty-one (21) day objection period. If no objection is filed within twenty-one (21) days, the Court may enter the order. A hearing will be set only upon filing of a timely objection to the motion.

(b) *Substantive Consolidation.* A request for substantive consolidation must be filed using the self-scheduling procedures set forth in L.B.R. 5005-1. Unless service is made electronically through the ECF system, the movant must serve the motion and hearing required notice upon all parties in interest. The notice must provide for a twenty-one (21) day objection period.

(c) *Severance or Deconsolidation.*

(1) A request to deconsolidate cases that have been substantively consolidated must be filed using the self-scheduling procedures set forth in L.B.R. 5005-1. Unless service is made electronically through the ECF system, the movant must serve the motion and hearing required notice upon all parties in interest.

(2) A request to sever jointly administered cases must be made by motion. Unless service is made electronically through the ECF system, the movant must serve the motion and passive notice on the debtor, all secured creditors, all parties who have specifically asked to receive copies and notices, and the creditors' committee. If there is no creditors' committee, then the motion must be served as specified in F.R.B.P. 1007(d). No hearing will be held on a motion to sever jointly administered cases unless an objection to the motion is filed within fourteen (14) days of service.

COMMENTS: *L.B.R. 1015-1 was amended effective October 15, 2010, to eliminate subparagraph (c)(3). The amendment reflects the present capability of CM/ECF to dismiss a debtor from a joint case without requiring case severance.*

Rule 1017-1 *Reinstatement of Dismissed Case.*

(a) A motion to reinstate a dismissed case must be in writing. If the Court sets a hearing on the motion, notice of the date by which objections must be filed and the hearing date must be served on the following:

(1) the debtor; and

(2) all parties previously notified of the dismissal under F.R.B.P. 2002(f)(2).

(b) Any motion to reinstate a dismissed case may be granted summarily.

Rule 1019-1 *Final Reports in Cases Converted from Chapter 13 to Chapter 7.*

Pursuant to F.R.B.P. 1019(5)(B), the chapter 13 trustee must file a final report and account within sixty (60) days after conversion of the case.

Rule 1071-1 *District Boundaries and Divisional Offices.*

(a) The Middle District of Pennsylvania is comprised of the following counties as set forth in 28 U.S.C. § 118(b): Adams, Bradford, Cameron, Carbon, Centre, Clinton, Columbia, Cumberland, Dauphin, Franklin, Fulton, Huntingdon, Juniata, Lackawanna, Lebanon, Luzerne, Lycoming, Mifflin, Monroe, Montour, Northumberland, Perry, Pike, Potter, Schuylkill, Snyder, Sullivan, Susquehanna, Tioga, Union, Wayne, Wyoming, and York.

(b) For the purpose of accepting bankruptcy petitions, conducting hearings, and all other Court business, the Middle District is organized under geographical divisions of Wilkes-Barre, Harrisburg, and Williamsport. Subject to Court discretion, the counties listed in subsection (a) above are assigned to these divisions, with specific county assignment posted on the Court's website under the "County Maps" link. (http://www.pamb.uscourts.gov/court-info).

Rule 1071-2 *Assignment of Cases.*

(a) Upon filing, the clerk will assign bankruptcy cases to a bankruptcy judge within this District by random blind draw so that no party, their attorneys, or the public at large is able to make a deliberate choice of a particular judge.

(b) The provisions of L.B.R. 1071-2(a) do not apply to cases filed under chapter 9. These cases are assigned to a bankruptcy judge by the Chief Judge of the Third Circuit Court of Appeals pursuant to 11 U.S.C. § 921(b).

PART II
OFFICERS AND ADMINISTRATION; NOTICES; MEETINGS; EXAMINATIONS; ELECTIONS; ATTORNEYS AND ACCOUNTANTS

Rule 2002-1 *Notice to Creditors and Other Interested Parties.*

(a) *Passive Notice.* A notice served under F.R.B.P. 2002(a)(3), (6), (7), or (8) must provide that if no objections are filed by the objection deadline, the Court may grant the relief requested. No hearing date will be included in the notice unless a written request is filed.

(b) *Notice to Parties in Interest.* In a case filed under any chapter, a proponent must give notice to all parties in interest as required under F.R.B.P. 2002(a)(2), (4), (5), and (6). In a chapter 11 case, a proponent also must give the notice required by F.R.B.P. 2002(b) and (d).

(c) *Notices by a Chapter 7, 11, 12, or 13 Trustee.* Generally, the clerk will provide any notice required to be served on all parties in interest by a chapter 7, 11, 12, or 13 trustee. Notwithstanding the above, a chapter 7 trustee pursuing assets is required to provide notice to all creditors and parties in interest, under these rules or under the Federal Rules of Bankruptcy Procedure, of the following:

(1) a trustee's application for compensation;

(2) an attorney for trustee's application for compensation;

(3) any notice of sale;

(4) any notice of compromise or settlement pursuant to F.R.B.P. 9019; and

(5) notice of a trustee's final report, if the net proceeds realized exceed $1,500.00.

(d) *Notice of § 341(a) Meeting.*

(1) *General Rule.* The clerk must serve notice of a meeting under 11 U.S.C. § 341(a) on all parties in interest listed on the mailing matrix.

(2) *Amended Mailing Matrix.* The debtor must serve notice of a meeting under 11 U.S.C. § 341(a) on all parties in interest added to the mailing matrix after notice of the meeting has been served pursuant to L.B.R. 2002-1(d)(1).

(3) *Notice of Rescheduled Meeting.* If the meeting under 11 U.S.C. § 341(a) is rescheduled before the meeting is called to order, notice of the rescheduled meeting must be given to all parties in interest by the party requesting the rescheduled meeting. When rescheduling is caused by inclement weather, Acts of God, sudden illness, or the debtor's failure to file required documents, the clerk will provide notice of the rescheduled meeting. However, in each

case for a pro se debtor, the clerk must provide notice of the rescheduled meeting to all parties in interest.

(4) *Chapter 13 cases.* In a chapter 13 case, notice of the meeting under 11 U.S.C. § 341(a) must include instructions on filing a proof of claim under L.B.R. 3001-1.

(e) *Notice of Confirmation of a Chapter 13 Plan.* The debtor must give all creditors and indenture trustees notice by mail of entry of an order confirming a Chapter 13 plan.

(f) *Notice to Equity Security Holders.* The debtor must provide notice of the order for relief and any other notices required under F.R.B.P. 2002(d) to its equity security holders.

(g) *Certificate of Service.* The certificate of service showing compliance with this rule must be filed with the clerk no later than seven (7) days following the date of service.

Rule 2003-1 *Meeting of Creditors and Equity Security Holders.*

(a) *Date and Place.* Any request to deviate from the general requirement that a debtor personally appear at a meeting under 11 U.S.C. § 341(a) must be made first to the United States trustee, or his designee. If the United States trustee denies the request, the debtor may file a motion with the Court.

(b) *Attendance.* Debtor's attorney should accompany debtor to a meeting under 11 U.S.C. § 341(a). If a debtor's attorney is unable to attend, he or she must arrange for a partner, member, or regular associate of his or her firm to serve as counsel or for another attorney to attend, if permitted under the Pennsylvania Rules of Professional Conduct.

(c) *Adjournment/Continuance.* If the meeting under 11 U.S.C. § 341(a) has been called to order by the trustee, the trustee must orally announce the new date and time to the parties in attendance at the originally scheduled meeting. The requirement, pursuant to F.R.B.P. 2003(e), that the presiding official, the trustee, file a statement specifying the date and time to which a meeting of creditors is adjourned may be satisfied by using the continued feature within the trustee interface of the ECF system.

Rule 2004-1 *Depositions and Examinations.*

The Court will consider a motion under F.R.B.P. 2004(a) fourteen (14) days after service on the respondent. If no objection or answer is filed within fourteen (14) days, an order may be entered by the Court. The order may be entered immediately if the motion contains a certification that the respondent has agreed to submit to the examination.

Rule 2014-1 *Employment of Professionals.*

(a) *Application to Employ Counsel or Other Professionals.* An application to employ counsel or other professionals must be filed with the clerk along with a verified statement of disinterestedness and a proposed order.

(b) *Application to Employ Persons for the Sale or Lease of Estate Property.* An application for employment of an agent or broker for the sale or lease of estate property must be accompanied by a copy of the signed written contract employing the agent or broker. An application for employment of an auctioneer must be accompanied by a copy of the auctioneer's surety bond or other security. A contract for employment must provide that it is effective only upon Court approval. When an applicant seeks appointment as a real estate agent or broker, as an appraiser, or as an auctioneer, the applicant must state if he or she is seeking compensation at a flat rate or on a percentage basis. Under L.B.R. 6005-1(b), an applicant for compensation at a flat rate or on a percentage basis may request the Court to approve the terms of compensation without filing a separate fee application, but if applicant later requests compensation on different terms, the Court must approve compensation. An application for employment under this rule requires conformity with the notice requirements of F.R.B.P. 2002(a)(6).

(c) *Objection by the United States Trustee.* Any objection to an application to employ must be filed by the United States trustee within seven (7) days from the date of service of the application unless the application is filed within fourteen (14) days of the filing of the petition. If the application is filed within fourteen (14) days of the filing of the petition, any objection must be filed within twenty-one (21) days of the filing of the petition.

Rule 2016-1 *Compensation of Professionals.*

This rule governs the procedure for professional applications for compensation. All professional fees paid from property of the estate are subject to Court approval. Compensation of attorneys for chapter 13 debtors are also subject to the provisions of L.B.R. 2016-2.

(a) *Fee Applications.* A fee application must include:

(1) *Cover Sheet.* A fee application must include a cover sheet that provides the Court with a summary of the fee application. The cover sheet must conform substantially to L.B.F. 2016-1.

(2) the date of the order appointing the professional;

(3) a statement indicating whether the application is for final or interim compensation and expenses, the total amounts requested, and the time period for the services rendered;

(4) the date and amount of previous compensation, if any, including any retainers paid;

(5) a chronological listing of services performed. Whenever applicable, the listing should include:

(A) an identification of the subject matter of any correspondence or phone call together with the party with whom that communication occurred;

(B) an identification of the subject matter of and parties involved in any hearing or trial, if the service involved is attendance at a hearing or trial;

(C) an identification of any pleading drafted; and

(D) the date the service or expense was incurred and the time expended, in tenths of hours, for the service rendered;

(6) an itemization of the expenses for which reimbursement is requested;

(7) an allegation that the professional is a disinterested person and has not represented or held an interest adverse to the interest of the estate on the matter on which he or she was employed in compliance with 11 U.S.C. § 327(a);

(8) for applications filed on behalf of attorneys, a history of the case in narrative form. The history should include, if applicable:

(A) a description of the debtor's financial situation when the case was filed;

(B) a description of significant events that have occurred post-petition;

(C) a description of specific issues that the debtor is required to resolve before a plan can be confirmed or the case otherwise resolved (for example, liquidation of real estate or resolution of pre-petition litigation);

(D) the status of any specific issues and their resolution; and

(E) items that need to be completed before the case can be confirmed or otherwise brought to a conclusion;

(9) a certification that the entity on whose behalf the applicant is employed has been given the opportunity to review the application and whether that entity has approved the requested amount;

(10) the names and hourly rates of all applicant's professionals and paraprofessionals who billed time. This should be accompanied by an explanation of any changes in hourly rates from those previously billed; and

(11) a proposed order of the Court approving the application.

(b) *Categorical Listing of Services.*

(1) In a case under any chapter in which the total aggregate amount requested for compensation by a professional is in excess of $100,000.00 the applicant must include a categorical listing of services. Appendix 2016-1 provides a non-exclusive list of suggested project categories.

(2) The description of each category must include the following information:

(A) a heading generally describing the services within the category;

(B) a narrative summary that:

(i) describes the project and its status, including all pending litigation for which compensation and reimbursement are requested; and

(ii) states the number of hours spent and the amount of compensation requested for each professional and paraprofessional on the project.

(c) *Non-Attorney Professionals Compensated on Non-Hourly Basis.* If the Court has previously entered an order approving the employment of a non-attorney who is customarily paid on a non-hourly basis and whose terms of compensation the Court has approved as provided in L.B.R. 2014-1(b), then no application for compensation is required for such non-attorney.

Rule 2016-2 *Compensation of Debtors' Attorneys in Chapter 13 Cases.*

(a) *General Rule*. This rule applies to compensation of Debtors' Attorneys in all chapter 13 cases. Attorneys may be compensated in one of two ways: (i) hourly billing (the "Lodestar" method) (L.B.R. 2016-2(b)); or (ii) accepting the "Presumptively Reasonable Fee" (L.B.R. 2016-2(c)). The attorney for the debtor must indicate in the district plan (L.B.F. 3015-1) whether the debtor and counsel have agreed that the attorney will be compensated under either the Lodestar fee or the Presumptively Reasonable Fee. After the petition is filed, an attorney may not receive payment of fees except through the chapter 13 plan, unless payment is otherwise approved by the Court.

(b) *Lodestar fee applications*. A Lodestar fee application must comply with L.B.R. 2016-1 but may exclude the information required under L.B.R. 2016-1(a)(2) and (a)(8). A model Lodestar fee application form is set forth in L.B.F. 2016-2(b).

(c) *Presumptively Reasonable Fee*.

(1) Except as otherwise provided in this subsection, an attorney may charge a Presumptively Reasonable Fee not to exceed $5,000.00 that includes all legal services rendered by the attorney through the conclusion of the case.

(2) If the chapter 13 trustee requires the debtor to file a business report or if the debtor holds a controlling interest in a corporation or LLC operating a business, an attorney may receive additional compensation in the maximum amount of $1,000.00.

(3) An attorney representing a consumer debtor who proposes to make mortgage payments through a chapter 13 plan ("conduit plan") may receive additional compensation in the maximum amount of $600.00.

(4) An attorney may receive additional compensation in the maximum amount of $600.00 for each post-confirmation plan modification that is approved or upon a showing of good cause.

(5) An attorney may seek fees in addition to those set forth in this subsection only upon a showing of good cause.

(d) Payment of Fees Through Plan. An attorney who has agreed to be paid through a proposed plan must file a Request for Payment of Chapter 13 Compensation and Expenses (L.B.F. 2016-2(c) ("Request for Payment")) no later than seven (7) days before the confirmation hearing on the plan. Failure to timely file a Request for Payment may result in a delay of confirmation of the Chapter 13 plan. In the event the confirmation hearing is continued, the Request for Payment is not required to be refiled if no additional fees are requested. When additional fees are requested, a new Request for Payment must be filed no later than seven (7) days before the continued confirmation hearing.

***COMMENTS**: Attorneys who request standard no-look fees, and who also plan to seek additional compensation for services beyond the flat fee or for work performed in cases dismissed before plan confirmation, must be prepared to provide detailed time records to support the requested fees.*

L.B.R. 2016-2 was amended effective May 1, 2022 and applies to Chapter 13 cases filed on or after May 1, 2022. The dollar amounts in paragraph (c) were updated in 2024 and apply to cases filed on or after October 1, 2024

Rule 2090-1 *Attorneys - Admission to Practice.*

(a) *General Admission.* Except as provided below, no attorney may appear on behalf of another unless first admitted to practice in the United States District Court for the Middle District of Pennsylvania.

(b) *Admission Pro Hac Vice.* An attorney who is admitted to practice before any United States District Court and the highest Court of any state or the District of Columbia, and who is a member of the bar in good standing in every jurisdiction where admitted to practice, and who is not subject to pending disciplinary proceedings in any jurisdiction, may be admitted to practice before this Court, but only for the purpose of a particular case and not generally under subdivision (a). A request for admission under this subdivision must be made by written motion of a member of the bar of this Court or by the attorney intending to practice before this Court. The Court, in its discretion, may grant an oral motion for admission made in open Court.

Rule 2090-2 *Attorneys - Discipline and Disbarment.*

(a) *Suspension or Disbarment from Practice.* This Court has the power and authority to govern, control, and discipline the conduct of attorneys appearing before it, including the power to suspend or disbar attorneys from practice before it.

(b) *Failure to Appear.* An attorney who fails to appear without just cause, either on a matter before the Court or as counsel for a debtor who fails to attend the debtor's § 341(a) meeting, may be subject to discipline by the Court.

(c) *Failure to Prepare.* An attorney who, without just cause, fails to adequately prepare for any pretrial conference, hearing, or trial may be subject to discipline by the Court.

PART III
CLAIMS AND DISTRIBUTION TO CREDITORS AND EQUITY INTEREST HOLDER; PLANS

Rule 3001-1 *Proof of Claim - Service.*

In a chapter 7 asset case, a chapter 12 case, or a chapter 13 case, a claimant must serve a copy of its proof of claim, with all attachments, on a pro se debtor.

Rule 3003-1 *Filing Proofs of Claim in Chapter 11 Cases.*

In chapter 11 cases, notice of a deadline for proofs of claim must be given in the following manner:

(a) *Party Request.* A party requesting the Court to set a date within which claims must be filed must provide notice of the bar date and a form of proof of claim to all creditors.

(b) *Sua Sponte.* If the Court sua sponte sets a date within which claims must be filed, the clerk must provide notice of the bar date and a form of proof of claim to all creditors.

Rule 3004-1 *Filing of Proofs of Claim by Debtor or Trustee.*

A debtor or trustee is responsible for service of a proof of claim filed pursuant to F.R.B.P. 3004.

Rule 3005-1 *Filing of Proofs of Claim by Co-Debtor.*

A co-debtor filing a proof of claim in the name of a creditor under F.R.B.P. 3005 must file an original and serve a copy on the creditor, any co-debtors, and the debtor.

Rule 3006-1 *Claims - Withdrawal.*

A request to withdraw a claim must state:

(a) whether an objection to the claim was filed;

(b) whether a complaint was filed against the claimant; and

(c) whether the claimant has accepted or rejected a plan or otherwise participated significantly in the case.

Rule 3007-1 *Claims - Objection.*

(a) *Contents.* An objection to the allowance of a claim must list in the caption or the pleading the claim number recorded on the claims register and state particular grounds for the objection, including, but not limited to:

(1) whether the claim should be disallowed in its entirety;

(2) whether the claim should be allowed in an amount different from that requested; or

(3) whether the classification of the claim (secured, priority unsecured, general unsecured) is incorrect.

(b) *Separate Objection.* A separate objection and notice that substantially conforms with L.B.F. 3007-1 must be filed for each claim objected to, except for omnibus objections filed pursuant to F.R.B.P. 3007(d).

(c) *Filing and Notice.* The objecting party must serve the objection to claim and a notice of same using L.B.F. 3007-1 (Notice of Objection to Claim and Deadline to Request Hearing) upon the persons specified under F.R.B.P. 3007(a)(2)(B). Unless otherwise ordered by the Court, a hearing on the objection to claim will not be scheduled unless the claimant files a request for hearing or response to the objection no later than thirty (30) days from the date the notice is served.

Rule 3010-1 *Small Dividends in Chapter 13 Cases.*

The chapter 13 trustee may make payments of amounts less than $15.00 to a creditor.

Rule 3012-1 *Determining the Amount of Secured and Priority Claims.*

The Debtor is responsible for service under F.R.B.P. 3012(b).

Rule 3015-1 *Chapter 13 - Model Plan.*

(a) A chapter 13 plan must conform with L.B.F. 3015-1.

(b) *Service.* If a chapter 13 plan includes either a request for determination of the amount of a secured claim or a request to avoid a lien or other transfer of property exempt under the Code, debtor must serve the plan upon all affected parties in the manner provided for in F.R.B.P. 3012(b) and F.R.B.P. 4003(d).

Rule 3015-2 *Chapter 12 or Chapter 13 - Amendments to Plans.*

(a) *Numbering.* Amended plans must be numbered sequentially beginning with "First Amended Plan."

(b) *Pre-Confirmation Amendments.* Once a plan has been filed, any changes to the plan proposed by the debtor must be made by filing an amended plan and not by filing a stipulation between the affected parties.

(c) *Filing and Service of Chapter 12 or Chapter 13 Amended Plan - Pre-Confirmation by a CM/ECF Filer*. If an amended plan is filed after the clerk's office notices the initial confirmation hearing but prior to the confirmation of the plan, a CM/ECF filer may request a new confirmation hearing date by using the self-scheduling procedures as set forth in L.B.R. 5005-1. At the time the amended plan is filed, and subject to the service requirements set forth in L.B.R. 3015-1(b) and F.R.B.P. 4003(d), the CM/ECF filer must provide a copy of the amended plan and the notice setting confirmation objection and hearing dates for the pre confirmation amended plan to each party on the mailing matrix, either by U.S. mail or electronically through the CM/ECF system. The CM/ECF filer must also file a certificate of service which complies with L.B.R. 9013-3.

(d) *Filing and Service of Chapter 12 or Chapter 13 Amended Plan - Pre-Confirmation by a Pro Se Debtor.* A self-represented debtor must file the amended plan with the clerk's office. Within five days thereafter, the debtor must serve the amended plan upon each party on the mailing matrix and file a certificate of service. The clerk will then serve a notice upon the parties in interest setting the date to object and of the confirmation hearing.

(e) *Modification of the Chapter 12 or Chapter 13 Plan After Confirmation by a CM/ECF Filer.* A request to modify a plan under F.R.B.P. 3015(h) shall be made by motion.

(f) *Service of Chapter 12 or 13 Amended Plan After Confirmation by a CM/ECF Filer.* Subject to the service requirements set forth in L.B.R. 3015-1(b) and F.R.B.P. 4003(d), an amended post confirmation plan and a passive notice containing the objection date must be provided to each creditor and party in interest, either by U.S. mail or electronically through the CM/ECF system. If an amended plan is filed that alters the treatment of the claims of a limited number of creditors, the debtor may be excused from serving the motion, notice, and amended plan on all creditors by filing the appropriate local form (L.B.F. 3015-2(a) for Chapter 13 cases or L.B.R. 3015-2(c) for Chapter 12 cases), certifying that service has been made on the affected creditors. Further, if an amended plan is filed to alter funding of the plan or to make technical amendments, but does not affect the payment of any creditor's claim, the debtor may be excused from serving the motion, notice, and amended plan on all creditors by filing L.B.F. 3015-2(b), (for Chapter 13 cases) or L.B.F. 3015-2(d) (for Chapter 12 cases), certifying the limited changes to the confirmed plan, and a red-lined copy of the amended plan showing the changes from the plan that is being modified.

(g) *Filing and Service of Chapter 12 or 13 Amended Plan After Confirmation by Pro Se Debtor.* A pro se debtor who wishes to amend a confirmed plan must file a motion to modify the confirmed plan with the clerk's office. The proposed modified plan and a proposed order must be attached to the motion to modify. Subject to the service requirements set forth in L.B.R. 3015-1(b), the pro se debtor must, within five (5) days, mail a copy of the amended plan, the motion to modify, and a proposed order to each creditor and party in interest. The pro se debtor must also file a certificate of service, which complies with L.B.R. 9013-2. After the certificate of service is filed, the clerk will then issue and send to creditors and parties in interest a passive notice setting the objection date on the post confirmation amended plan.

(h) *Waiver of Objections to Chapter 12 or Chapter 13 Plans.* The failure to file a timely objection, upon notice, is deemed a waiver of all objections to the amended plan and any prior plans, and the Court may confirm the amended plan without further notice or hearing.

Rule 3015-3 *Chapter 12 or Chapter 13 - Confirmation Hearing.*

(a) *Chapter 12 and 13 Pre-Confirmation Certifications.* At least twenty-four hours before the confirmation hearing, the debtor must file the appropriate Pre-Confirmation Certification (L.B.F. 3015-3(a) for Chapter 13 cases and L.B.F. 3015-3(c) for Chapter 12 cases) and, if applicable, submit to the Chapter 13 Trustee a Certification Regarding Domestic Support Obligation(s) in conformity with L.B.F. 3015-3(b).

(b) *Appearances at Hearing.* Neither the debtor nor debtor's counsel need appear at the Chapter 13 confirmation hearing if:

(1) There are no timely-filed, pending objections to the plan; and

(2) The pre-confirmation certifications have been filed submitted as required by L.B.R. 3015-3(a).

If neither the debtor nor debtor's counsel appear at the hearing under this subsection and a party in interest appears and is permitted to lodge an untimely objection, the Court will reschedule the hearing on confirmation.

(c) *Payment of Filing Fee.* The entire case filing fee must be paid prior to the confirmation of any plan. The Court may waive this requirement upon motion.

Rule 3015-4 *Chapter 13 - Adequate Protection Payments.*

The trustee will distribute pre-confirmation adequate protection payments to any creditor identified in the plan as receiving payments from trustee and for which a proof of claim has been filed, less the trustee's statutory compensation and expenses, as soon as practicable after receipt of said payment from the debtor.

Rule 3015-5 *Chapter 12 and 13 Pre-Discharge Certifications.*

A discharge will not be entered unless, after the completion of plan payments, the debtor has filed the appropriate Certification Regarding Domestic Support Obligations and Section 522(q) (Official Form 2830 for Chapter 13 cases and L.B.F. 3015-6 for Chapter 12 cases).

Rule 3016-1 *Disclosure Statement - General.*

(a) *Contents.* Unless the Court orders otherwise, any disclosure statement or amended disclosure statement must include the following information in addition to all other information required by applicable law:

(1) an introductory narrative summarizing the plan, which must include:

(A) an identification of each class of claims or interests;

(B) the composition of each class as to number and type of creditor or interest;

(C) the amount of claims and interests (specifying any that are known to be disputed and how they will be treated under the plan);

(D) the amount (dollar and/or percentages) to be paid to each class and the timing of payments to be made under the plan; and

(E) all sources and amounts of funding in reasonable detail;

(2) a summary exhibit setting forth a liquidation analysis as if assets of the debtor were to be liquidated under chapter 7; and

(3) a narrative summarizing the scheduled assets and liabilities as of the date of the order for relief:

(A) reciting the disposition of assets during the chapter 11 case;

(B) describing the process for handling initial and subsequent disbursements under the plan; and

(C) identifying persons responsible for making disbursements under the plan.

(b) *Disclosure Statement Accompanying Reorganization Plan.* Unless a liquidating plan is proposed, each disclosure statement must also include a projected cash flow and budget, including plan payments over the shorter of the life of the plan or three fiscal years following confirmation, showing all anticipated income and expenses.

Rule 3017-1 *Disclosure Statement - Approval.*

(a) *Notice and Hearing.* Upon receipt of a disclosure statement, the Court will issue an order and notice for hearing on the disclosure statement. The plan proponent filing the disclosure statement must mail the order and notice to all parties listed in F.R.B.P. 3017(a).

(b) *Amended Disclosure Statements.* With every amended disclosure statement, the plan proponent must file a Certification Regarding Amended Disclosure Statement (L.B.F. 3017-1). The plan proponent must serve copies of the amended disclosure statement on parties in interest whose claims or interests may be affected by the changes and notify them of a new objection date as directed by the Court.

(c) *Transmission of Approved Disclosure Statement and Order.* After entry of an order approving the disclosure statement, the plan proponent must mail the order, the plan or a Court-approved summary of the plan, the disclosure statement, and a ballot for accepting or rejecting the plan conforming to Class [ ] Ballot for Accepting or Rejecting Plan of Reorganization (Official Form 314) to all creditors and interest holders. The ballot must state that ballots are to be returned to the plan proponent and not to the clerk.

Rule 3018-1 *Service of Ballots and Report of Results of Balloting.*

Any ballot accepting or rejecting a plan must be served on the plan proponent as specified on the ballot. No less than seven (7) days before the confirmation hearing, the plan proponent must file the Section 1126 Ballot Report Form (L.B.F. 3018-1) and serve a copy on the debtor (unless the debtor is the plan proponent) and each committee. The proponent must retain the ballots.

Rule 3019-1 *Chapter 11 - Amendments to Plan.*

With every plan that is amended or modified before confirmation, a plan proponent must file a Certification Regarding Amended Plan of Reorganization (L.B.F. 3019-1) and a red-lined copy of the amended plan showing the changes from the plan that is being modified. The plan proponent must serve copies of the amended plan on parties in interest whose claims or interests may be affected by the changes and notify them of a new objection date as directed by the Court. The proponent of an amended plan may be excused from serving the motion, notice, and amended plan on all creditors by filing L.B.F. 3019-1 certifying that it can be confirmed as submitted because all previously filed objections have been resolved or withdrawn, the amended plan does not adversely change the treatment of any creditor's claim or interest within the meaning of F.R.B.P. 3019(a), and it complies with the requirements of 11 U.S.C. § 1123 and § 1129.

Rule 3020-1 *Chapter 11 - Individual Debtor Confirmation*.

A confirmation order will not be entered unless, at least seven days before the confirmation hearing, the debtor has filed an Individual Chapter 11 Debtor's Certification Regarding Domestic Support Obligations (L.B.F. 3020-1) .

Rule 3022-1 *Final Report/Decree (Chapter 11)*.

(a) *Motion.* A motion for a final decree must certify that the estate is fully administered and list all pending adversary proceedings related to the case.

(b) *Service of Motion.* The motion must be served on all secured creditors and any committee appointed under 11 U.S.C. § 1102, or its authorized agent. If no committee of unsecured creditors has been appointed under 11 U.S.C. § 1102, the motion must be served on the creditors included on the list filed under F.R.B.P. 1007(d).

PART IV
THE DEBTOR: DUTIES AND BENEFITS

Rule 4001-1 *Automatic Stay - Relief from.*

(a) *Filing a Motion for Relief from the Automatic Stay.* A motion for relief from the automatic stay must be filed using the self-scheduling procedures set forth in L.B.R. 5005-1. Unless service is made electronically through the ECF system, the movant must serve the motion and semi-passive notice upon the persons specified under F.R.B.P. 4001 and L.B.R. 4001-6.

(b) *Combination of Motions.* A motion for relief from the stay may not be combined with a request for any other relief.

(c) *Proposed Order.* Each motion for relief from the automatic stay must be accompanied by a proposed order granting the relief requested in the motion.

(d) *Contents of Motion.* The motion seeking relief must state the following:

(1) the location of the property;

(2) the priority of the movant's lien relative to any other liens against the property, if known without further inquiry;

(3) the contract amount of current monthly installments; and

(4) the stage to which debt enforcement or foreclosure actions had progressed when the order for relief was entered.

(e) *Debtor's Principal Residence.* If relief is sought for a post-petition default in a chapter 11 or 13 case with respect to property that is a debtor's principal residence, the movant must file L.B.F. 4001-1, signed by the movant, or an officer or employee of the movant, with the motion.

(f) *Concurrence in Motion.* The movant must seek the concurrence of the debtor and of the trustee, if one has been appointed in the case. The movant must file a certificate with the motion for relief stating whether concurrence was obtained. If a certificate of concurrence/nonconcurrence is not filed with the motion for relief, the Court may deny the motion *sua sponte*.

Rule 4001-2 *Cash Collateral.*

(a) *Filing a Motion to Authorize or Prohibit Use of Cash Collateral.* A motion seeking to authorize or prohibit the use of cash collateral must be filed using the self-scheduling procedures set forth in L.B.R. 5005-1. Unless service is made electronically through the ECF system, the movant must serve the motion and hearing required notice upon the persons specified under F.R.B.P. 4001 and L.B.R. 4001-6.

(b) *Required Disclosure of Certain Provisions of Financing Motion.* Each motion to use cash collateral must comply with L.B.R. 4001-3(c), (d), and (e), and interim and final relief must be granted, denied, or conditioned as provided under L.B.R. 4001-3(f) and (g).

Rule 4001-3 *Obtaining Credit*.

(a) *Filing a Motion to Obtain Credit.* A motion seeking authority to obtain credit must be filed using the self-scheduling procedures set forth in L.B.R. 5005-1. Unless service is made electronically through the ECF system, the movant must serve the motion and semi-passive notice upon the persons specified under F.R.B.P. 4001 and L.B.R. 4001-6.

(b) *Credit Agreement.* Each motion for authority to obtain credit must be accompanied by the proposed credit agreement.

(c) *Required Disclosure of Certain Provisions of Financing Motion, Order, or Stipulation - Chapter 9 or Chapter 11 Cases.* All motions seeking authorization to use cash collateral and all motions for authority to obtain credit - collectively, the "Financing Motions" - must:

(1) recite whether the proposed form of order, underlying cash collateral stipulation, or loan agreement contains any provision of the type indicated below;

(2) identify the location of any such provision in the proposed form of order, cash collateral stipulation, or loan agreement; and

(3) state the justification for the inclusion of such provision:

(A) Provisions that grant cross-collateralization protection - other than replacement liens or other adequate protection - to the prepetition secured creditor (i.e., clauses that secure prepetition debt by postpetition assets in which the secured creditor would not otherwise have a security interest by virtue of its prepetition security agreement or applicable law).

(B) Provisions or findings of fact that bind the estate or parties in interest with respect to validity, perfection, priority, or amount of the secured creditor's prepetition lien or debt or the waiver of claims against the secured creditor without first giving parties in interest at least seventy-five (75) days from the entry of the order for relief and the creditors' committee, if formed, at least sixty (60) days from the date of its formation to investigate such matters.

(C) Provisions that seek to waive any rights the estate may have under 11 U.S.C. § 506(c).

(D) Provisions that grant to the prepetition secured creditor liens on the debtor's claims and causes of action arising under 11 U.S.C. §§ 544, 545, 547, 548, and 549.

(E) Provisions that deem prepetition secured debt to be postpetition debt or that use postpetition loans from a prepetition secured creditor to pay part or all of that secured creditor's prepetition debt, other than as provided under 11 U.S.C. § 552(b).

(F) Provisions that provide treatment for the professionals retained by a committee appointed by the United States trustee different from that provided for the professionals retained by the debtor with respect to a professional fee carveout, and provisions that limit the committee counsel's use of the carveout.

(G) Provisions that prime any secured lien without the consent of the lienholder.

(H) Provisions that release the secured creditor from lender liability.

(I) Provisions that grant the lender expedited relief from the automatic stay under 11 U.S.C. § 362 or relief from the automatic stay without further order of Court.

(d) *Summary of Essential Terms.* Any Financing Motion must provide a summary of the essential terms of the proposed use of cash collateral or financing, including:

(1) the amount to be borrowed or advanced on both an interim and final basis;

(2) the terms of repayment;

(3) the interest rate;

(4) the description of any collateral;

(5) events of default; and

(6) limitations on the use of funds.

(e) *Budget.* Any Financing Motion must include a budget covering the time period during which the proposed financing will remain in effect. The budget must state in as much detail as is reasonably practical the amount of the projected receipts and disbursements during the period covered by the budget.

(f) *Interim Relief.* If a Financing Motion is filed with the Court on or shortly after the date of the order for relief, the Court may grant interim relief pending review by parties in interest of the proposed debtor in possession financing arrangements. Interim relief will be granted only to avoid immediate and irreparable harm to the estate pending a final hearing. In the absence of extraordinary circumstances, the Court will not approve interim financing orders that include any of the provisions previously identified under L.B.R. 4001-3(c)(3).

(g) *Final Approval of Financing Motion.* A final order may be entered only after notice and hearing under F.R.B.P. 4001. If formation of a creditors' committee is anticipated, a final hearing may not be held until at least fourteen (14) days following the organizational meeting of the creditors' committee contemplated by 11 U.S.C. § 1102 unless the Court, upon motion, orders otherwise.

COMMENTS: *L.B.R. 4001-3 was amended effective December 1, 2009, to limit the detailed disclosures concerning motions seeking authority to use cash collateral or obtain credit to cases filed under Chapters 9 or 11.*

Rule 4001-4 *Filing a Motion Seeking to Prohibit or Condition the Use, Sale, or Lease of Property Other Than Cash Collateral.*

Unless service is made electronically through the ECF system, the movant must serve the motion seeking to prohibit or condition the use, sale, or lease of property and semi-passive notice upon the persons specified under F.R.B.P. 4001 and L.B.R. 4001-6.

COMMENTS: L.B.R. 4001-4 *was amended effective September 1, 2014, to align with current noticing procedures. Motions to prohibit or allow the use of cash collateral are governed by* L.B.R. 4001-2.

Rule 4001-5 *Motions to Extend the Automatic Stay Under Section 362(c)(3) and Motions to Impose Automatic Stay Under Section 362(c)(4).*

(a) *Motion.* A motion to extend the automatic stay under Section 362(c)(3)(B) must be filed and served within seven days after the petition is filed. Any such motion not filed and served within seven days must comply with Local Rule 9075-1 (Emergency Orders). If an emergency order is granted, the moving party will be responsible for serving both the motion and notice generated by the Clerk's Office.

(b) *Contents.* If the stay is to be extended or imposed with regard to all creditors, then the motion must so indicate. If the motion seeks only to extend the stay or to impose the stay as to particular creditors, then the motion must identify those particular creditors. The motion also must state with particularity why the later filing has been made in good faith.

(c) *Service.* A motion that seeks to extend or impose the stay as to all creditors must be served upon all creditors. A motion that seeks to extend or impose the stay only as to particular creditors must be served upon those particular creditors.

(d) *Affidavit.* The movant may file a verified affidavit setting forth the substantial changes in the financial or personal affairs of the debtor since the dismissal of the next most previous bankruptcy case. In the absence of timely filed objections, the Court may enter an order extending the automatic stay without a hearing where a sufficient affidavit has been filed.

Rule 4001-6 *Service of Motions under F.R.B.P 4001.*

In addition to the parties identified in F.R.B.P. 4001, the following motions must also be served upon creditors listed on the schedules as holding claims secured by the asset(s) identified in the motion:

(a) A motion for relief from the stay;

(b) A motion seeking an order prohibiting or conditioning the use, sale, or lease of property;

(c) A motion to use cash collateral;

(d) A motion for authority to obtain credit;

(e) Any agreement regarding any of the preceding motions;

(f) A motion to extend, continue, or impose the automatic stay; or

(g) A motion to confirm the termination or absence of the automatic stay.

Rule 4003-1 *Exemptions*.

(a) *Notice of Response Date to Objection.* When an objection is filed to a debtor's exemptions, the clerk will give twenty-one (21) days' notice by mail of the time fixed for filing a response to the objection.

(b) *Hearing Date for Objection to Exemptions.* Except as provided in subdivision (c), the clerk will set a hearing date on the objection if a response is filed by the debtor.

(c) *Request for Hearing Required.* If the chapter 13 trustee files an objection to exemptions, the clerk will not set a hearing date until requested by the debtor or the trustee.

Rule 4004-1 *Motion to Defer Entry of Discharge Order.*

A motion to defer entry of the discharge order for the purposes of obtaining additional time to file a certificate showing that a course on personal financial management has been completed (if such a certificate is required by F.R.B.P. 1007(b)(7)) must indicate why debtor is unable to obtain and file the certificate within the required time period.

Rule 4006-1 *Closing Chapter 7 or Chapter 13 Cases Without Discharge.*

If a certificate showing that a course on personal financial management has been completed is not filed in accordance with F.R.B.P. 1007(b)(7) and (c) and the time limits contained therein, the clerk may close the case without the issuance of an order of discharge and notify creditors thereof.

Rule 4008-1 *Reaffirmation*.

(a) *General Procedure.* A reaffirmation agreement must be substantially in compliance with L.B.F. 4008-1(a). A reaffirmation agreement must be accompanied by the Cover Sheet for Reaffirmation Agreement (Official Form 427). If the presumption arises that the reaffirmation agreement will impose an undue hardship on the debtor, and if the presumption is not rebutted to the satisfaction of the Court by a statement on the reaffirmation agreement that identifies additional sources of funds to make the agreed payments, the Court will set the matter for hearing.

(b) *Hearings.* Hearings will be held on all reaffirmation agreements filed by pro se debtors and debtors whose counsel has not signed the certification page of the agreement. Hearing will be held on any agreement which, in the judgment of the Court, may impose an undue hardship on the debtor.

COMMENTS: *L.B.R. 4008-1 was amended effective December 1, 2009, to provide for the filing of a reaffirmation cover sheet in accordance with F.R.B.P. 4008 and to delete the former requirement for submission of a proposed order complying with L.B.F. 4008-1(b), which form was eliminated as part of the amendments.*

PART V
COURTS AND CLERKS

Rule 5001-1 *Clerk's Office.*

Except as otherwise ordered by the Court, or when closed by federal or official holiday, the clerk's offices in Wilkes-Barre and Harrisburg will be open to the public from 9:00 a.m. to 4:00 p.m., Monday through Friday.

Rule 5004-1 *Disqualification.*

(a) *Motion.* A request for disqualification of a judge must be made by written motion. If a hearing is set, the clerk will provide to the movant an order setting the hearing date. The movant must serve the order upon:

(1) the debtor; and

(2) if disqualification from the entire case is not sought, all parties that are engaged in litigation before the Court with regard to an adversary proceeding or contested matter from which the basis for disqualification arose unless service is made on such parties electronically through the ECF system.

(b) *Oral Motion.* The motion may be made orally in open Court if grounds for disqualification are first presented during proceedings before the judge.

Rule 5005-1 *Filing and Transmittal of Papers.*

(a) *Electronic Filing and Signing.*

(1) *By a Represented Entity*. An entity represented by an attorney must file documents by using the Court's Electronic Case Filing system ("ECF" or "CM/ECF") in accordance with the CM/ECF Administrative Procedures available on the Court's website (www.pamb.uscourts.gov). However, non-electronic filing may be allowed for good cause, or as otherwise provided for by these rules;

(2) By A Self-Represented Individual.

(A) *Using the Electronic Document Submission System ("EDSS")*. A self-represented individual may file documents (other than proofs of claim) electronically using the EDSS. Persons filing with EDSS must comply with the EDSS Administrative Procedures available on the Court's website (www.pamb.uscourts.gov). Proofs of claim may be filed electronically using the Electronic Proof of Claim System ("ePOC") in accordance with Local Rule 5005-1(b).

(B) *Using the Court's Electronic Case Filing ("CM/ECF") system*. An individual not represented by an attorney:

(i) may file electronically using CM/ECF only if allowed by Court order or through compliance with the conditions authorizing same as set forth in the CM/ECF Administrative Procedures adopted by this District; and

(ii) may be required to file electronically only by Court order or as otherwise provided for in the CM/ECF Administrative Procedures adopted by this District.

(3) *Signing.*

(A) An Electronic Signature made by a person is an original signature for purposes of this Rule. Documents that are electronically filed and require original signatures or require verification under F.R.B.P. 1008 or contain an unsworn declaration under 28 U.S.C. § 1746, must be maintained in paper or Electronic form by the filer for 2 years.

(B) The following definitions shall apply to this Rule:

"Electronic." Relating to technology having electrical, digital, magnetic, wireless, optical, electromagnetic or similar capabilities.

"Electronic Signature." An electronic symbol or process attached to or logically associated with a document and executed or adopted by a person with the intent to sign the document.

(4) *Same as a Written Paper*. A paper filed electronically is a written paper for purposes of these rules, the Federal Rules of Bankruptcy Procedure, and Section 107 of the Code.

(b) *Filing Proofs of Claim.* Notwithstanding the requirements of L.B.R. 5005-1(a), claims may be filed, amended, or withdrawn through the Court's Electronic Proof of Claim ("ePOC") system without the need to register or login as a user in the Court's CM/ECF system. Any claim filed, amended, or withdrawn electronically through the ePOC system will constitute the filer's approved signature and have the same force and effect as if the authorized individual signed a paper copy of the proof of claim form, amendment, or withdrawal.

(c) *Temporary Paper Filing.* An attorney who is not a registered CM/ECF filer may file initial papers in person, or by using the Court's Electronic Document Submission System after seeking permission from the Court. Before any additional papers are filed, the attorney must apply for and obtain a CM/ECF login and password.

(d) *Self-Scheduled Matters*.

(1) *Filing a Self-Scheduled Matter*. When a motion or other document is filed using self-scheduling, the CM/ECF filer must use the Courtroom Hearing Scheduler ("CHS").

(2) *Self-Scheduled Matters*. A list of the matters that may be self-scheduled, as well as the filing procedures, are posted on the Court's website under the Self-Scheduling Hearings button. (www.pamb.uscourts.gov).

(3) *Matters Which Cannot Be Self-Scheduled*. No matters other than those listed under the Self-Scheduling Hearings button can be self-scheduled.

COMMENTS: *The definitions set forth in subparagraph (a)(3)(B) were adopted from the Electronic Signature in Global and National Commerce Act, 15 U.S.C. § 7001, et. seq., and the Pennsylvania Uniform Electronic Transaction Act, 73 P.S. § 2260.101 et. seq.*

Rule 5005-2 *Time-Stamped Copies.*

To receive a time-stamped copy of a document, the filing party must provide the clerk with a copy of the document and a self-addressed, stamped envelope.

Rule 5005-3 *Filings During Systems Failures.*

(a) *Individual User's Systems Failure.* An entity or individual may file papers in person, by facsimile, or through the Court's Electronic Document Submission System for up to seventy-two (72) hours when electronic filing is not possible due to a failure in the filer's systems, including, without limitation, hardware, software, or internet connection. For CM/ECF filers, any filing made by means other than CM/ECF must be accompanied by an affidavit stating why the document could not be filed through CM/ECF.

(b) *Court Systems Failure*. In the event that the applicable Court electronic filing system (CM/ECF, EDSS, or ePOC) is unable to accept filings continuously over a period of more than two (2) hours after 7:00 a.m., an electronic filer may use any of the following filing methods:

(1) file the documents using the Court's Electronic Document Submission System ("EDSS") available on the Court's website;

(2) file the documents in person by bringing the documents to the clerk's office in paper, accompanied by an electronic storage format (i.e., flash drive, CD-ROM) that contains the document in PDF format without any password requirement; or

(3) seek appropriate relief from the Court or proceed pursuant to any generally applicable order that may have been entered addressing the technical failure.

(c) The Court's ability to grant relief may be limited by F.R.B.P. 9006(b).

Rule 5010-1 *Reopening Cases.*

A motion to reopen a case, which may be granted summarily, must be accompanied by the appropriate filing fee unless waived by the Court. The filing fee may be waived if the case is opened to correct an administrative error, to assert the protection of the discharge injunction, or for cause shown. The motion must be served on:

(a) the debtor; and

(b) any other party as directed by the Court.

Rule 5011-1 *Withdrawal of Reference.*

(a) *Filing of Motion.* The movant must file a motion, proposed order, and supporting brief with the clerk of the Bankruptcy Court. The clerk of the Bankruptcy Court will transmit the motion and supporting documents to the District Court. All documents filed after the initial motion, proposed order, and supporting brief must be filed with the clerk of the District Court.

(b) *Motion Contents.* The motion must address the following:

(1) whether the proceeding for which withdrawal is being sought is core under 28 U.S.C. § 157(b) or non-core under 28 U.S.C. § 157(c) and, if core, whether the Bankruptcy Court lacks the constitutional authority to enter a final order or judgment;

(2) whether withdrawal of the reference is permissive under 28 U.S.C. § 157(d);

(3) whether withdrawal of the reference is mandatory under 28 U.S.C. § 157(d).

(c) *Notice of the Motion.* The movant must provide notice to all creditors and parties in interest if the motion requests withdrawal of the entire bankruptcy case or provide notice to the parties in the adversary proceeding if the motion requests withdrawal of an adversary proceeding or counts within the proceeding.

(d) *Objections to the Motion.* Any party opposing the motion must file with the District Court and serve on the movant and other interested parties an objection and brief within fourteen (14) days after service of the motion and a supporting brief.

(e) *Bankruptcy Court Report and Recommendations.* After the time for filing objections has expired, the bankruptcy judge assigned to the bankruptcy case will file with the District Court, within fourteen (14) days, a report and recommendation on the motion to withdraw the reference. Once the report and recommendation is submitted by the bankruptcy judge, any party may object to the report and recommendations within

fourteen (14) days after being served with a copy thereof. Thereafter, the motion will be ripe for disposition by the District Court.

(f) *Procedure After Grant of the Motion.* If the District Court grants the motion, all further proceedings will be governed by the Rules of Court for the Middle District of Pennsylvania.

COMMENTS: *L.B.R. 5011-1 was adopted effective June 1, 2016, to provide the procedure for filing a motion to withdraw the reference.*

PART VI
COLLECTION AND LIQUIDATION OF THE ESTATE

Rule 6004-1 *Use, Sale, or Lease of Property.*

(a) *Sale on Notice.* A sale of assets, other than in the ordinary course of business, under and subject to liens, may be conducted, on notice, pursuant to 11 U.S.C. § 363(b). The notice of sale is subject to the notice requirements of this rule.

(b) *Sale Upon Motion.* Any sale on motion is subject to the notice requirements of this rule. Any motion for a free and clear sale is subject to the notice requirements of this rule and to the additional requirements of L.B.R. 6004-5.

(c) *Sale Notices.* When the proposed use, sale, or lease of property is upon notice or motion (unless subject to the exceptions in F.R.B.P. 6004(d) or L.B.R. 9075-1), the required notice must include:

(1) the caption of the case;

(2) the name and address of the seller;

(3) a general description of the property to be sold;

(4) the place, date, and time the property may be examined prior to the sale or an explanation of how an interested party may be afforded an opportunity to examine the property prior to the sale;

(5) the terms and conditions of sale, including the terms of any pending offers, or minimum bid requirements, or breakup fee provisions;

(6) the date, time, and place of any public sale;

(7) whether the sale is subject to higher and better offers and how such offers must be submitted;

(8) in any private sale, the identity of the purchaser and any affiliation or relationship with the debtor or an insider of the debtor;

(9) the last date by which objections to the sale must be filed with the Court - which must be not less than twenty-one (21) days after the notice is mailed, unless the Court shortens the time under F.R.B.P. 9006 or directs another method of giving notice; and

(10) a statement that inquiries regarding the sale should be directed to the seller or their counsel or agent and not to the clerk.

(d) *Service.* Unless the Court directs otherwise, and unless service is made electronically through the ECF system, the notice of sale must be served on the following:

(1) the debtor;

(2) the trustee, if any;

(3) indenture trustees, if any;

(4) all creditors;

(5) all committees appointed under the Bankruptcy Code, if any;

(6) the United States trustee;

(7) the United States as required by F.R.B.P. 2002(j); and

(8) all holders of liens or encumbrances against the property.

(e) *Address for Service.* Service of a notice of sale must be made at the address set forth in any request for notices filed under F.R.B.P. 2002(g)(1). If a request has not been filed, the notice must be served under F.R.B.P. 2002(g)(2) unless a different address is listed in a late r-filed proof of claim. In the latter instance, the address stated in the proof of claim must be used.

Rule 6004-3 *Public Sale Bidding Procedures in a Chapter 11 Case.*

In the case of a public sale conducted in a chapter 11 case by other than a professional auctioneer, the seller must file a sale procedure motion which will detail the bidding procedures, including the following:

(1) any minimum bid requirements;

(2) any minimum bid increment requirements;

(3) whether any bidder who has a contractual right to a topping or breakup fee will receive a credit equal to the breakup or topping fee when bidding on the property; and a provision that all bidding must take place outside the presence of the Court.

Rule 6004-4 *Special Sale Provisions in a Chapter 11 Case.*

(a) *Breakup/Topping Fees and Expense Reimbursement.* When the seller in a chapter 11 case is seeking Court approval of a breakup or topping fee or other bidding protections (such as the estate's proposed payment of out-of-pocket expenses incurred by a bidder or contract purchaser), the sale motion must include the following:

(1) the name of the party entitled to the breakup or topping fee;

(2) the dollar amount or the method to calculate the breakup or topping fee; and

(3) any relationship between the seller and the party eligible for the breakup or topping fee.

(b) *Sale to Insider.* If the seller seeks Court approval of a sale to an insider of the debtor, the motion must include the following information:

(1) the name of the insider;

(2) the relationship of the insider to the debtor; and

(3) the measures that have and will be taken to ensure the fairness of the sale process.

(c) *Agreements with Management.* Any motion seeking approval of the private sale of an ongoing business must disclose the following:

(1) whether the proposed purchaser has entered into any agreements with management or key employees concerning compensation or future employment;

(2) the material terms of any agreements between the proposed purchaser and management or key employees; and

(3) what measures have or will be taken to ensure the fairness of the sale in light of such agreements with management or key employees.

(d) *Tax Exemption.* If the debtor is seeking to have a sale declared exempt from taxes under 11 U.S.C. § 1146(a), the sale motion must disclose the type of tax (i.e., recording tax, stamp tax, use tax, capital gains tax) for which the exemption is sought. The debtor must also identify the state or states in which the affected property is located. The sale motion must state whether or not the chapter 11 plan has been confirmed.

(e) *Relief from F.R.B.P. 6004(h).* If the seller seeks relief from the stay imposed by F.R.B.P. 6004(h), the sale motion must state the basis for the request.

***COMMENTS**: L.B.R. 6004-4(d) was amended effective December 1, 2009, to comply with the decision of Florida Dept. of Revenue v. Piccadilly Cafeterias, Inc., 128 S.Ct. 2326 (U.S. 2008).*

Rule 6004-5 *Sales of Property Free and Clear of Liens - Section 363(f).*

(a) *Notice.* All free and clear sales are subject to the applicable notice requirements of L.B.R. 6004-1(b), (c), and (d).

(b) *Motion.* A sale of property free and clear of liens must be commenced by motion, except as provided in subdivision (c) below. A motion for a free and clear sale must name as respondents all parties claiming an interest in the property.

(c) *Complaint.* A sale of property free and clear of liens must be brought as an adversary proceeding and commenced by a complaint under Part VII of the Federal Rules of Bankruptcy Procedure and Part VII of the Local Bankruptcy Rules when the seller also seeks:

(1) to determine the validity, priority, or extent of a lien or other interest in property, other than the avoidance of a lien or other transfer of property exempt under 11 U.S.C. § 522(f); or

(2) to obtain approval under 11 U.S.C. § 363(h) for the sale of both the interest of the estate and of a co-owner in the property unless the concurrence of the co-owner has been obtained.

(d) *Order.* When a motion is filed for a sale free and clear of liens, the clerk will issue an order fixing a response date and a hearing date. A hearing will be held only if a responsive pleading is timely filed, unless a hearing is requested by the moving party or is ordered by the Court. Otherwise, an order granting the relief requested will be entered without a hearing.

(e) *Service of Motion.* The seller must serve a copy of the motion and the order referred to in subparagraph (d) upon all lienholders and other parties claiming an interest in the property and their counsel of record.

(f) *Service of Notice.* Unless the Court directs otherwise, the seller must serve the notice on the respondent and any parties referenced in L.B.R. 6004-1(c), at least twenty-one (21) days before the hearing on the sale.

Rule 6005-1 *Appraisers, Real Estate Agents, and Auctioneers.*

(a) *Form of Application.* All applications must conform to L.B.R. 2014-1.

(b) *Payment of Compensation.* An appraiser, real estate agent, or auctioneer may receive compensation and reimbursement of expenses from the proceeds of any sale approved by the Court without filing a separate application for the approval of compensation and expenses under the following conditions:

(1) the terms for the payment of compensation and reimbursement of expenses were disclosed in the application for employment;

(2) the order approving retention of the appraiser, real estate agent, or auctioneer approved the compensation arrangement proposed in the application for employment; and

(3) the order approving the sale authorized the payment of compensation and expenses to the appraiser, real estate agent, or auctioneer.

Rule 6006-1 *Executory Contracts.*

(a) *Notice.* A notice of a motion for the assumption, rejection, or assignment of an executory contract or unexpired lease must contain the following:

(1) a date by which objections may be filed;

(2) a statement that in the event there are no objections filed an order may be entered approving the proposed assumption, rejection, or assignment without further notice; and

(3) the hearing date and time when any objection to the motion is to be heard.

(b) *Response.* No response is required to an objection.

Rule 6007-1 *Abandonment or Disposition of Property.*

(a) *Proposed Abandonment.* A notice of intent to abandon property must contain sufficient information to allow parties in interest to make an informed decision regarding whether abandonment of a particular asset is in the best interest of the estate.

(b) *Objection to Abandonment.* An objection to a proposed abandonment of property of the estate must state specific grounds for the objection. No response is required to an objection.

PART VII
ADVERSARY PROCEEDINGS

Rule 7002-1 *District Court Rules.*

Local Rules of the United States District Court for the Middle District of Pennsylvania LR 7.1 through 7.8 and 15.1 (https://www.pamd.uscourts.gov) apply in adversary proceedings unless modified by these rules.

COMMENTS: *L.B.R. 7002-1 was amended effective September 1, 2014, to make District Court Rule 15.1, concerning amended pleadings, applicable to adversary proceedings.*

Rule 7003-1 *Adversary Proceeding Cover Sheet.*

Any paper complaint filed under Part VII of the Federal Rules of Bankruptcy Procedure must be accompanied by an Adversary Proceeding Cover Sheet (Official Form 1040).

Rule 7005-1 *Filing of Discovery Materials.*

(a) *Discovery Motions.* A party seeking a protective order, an order to compel discovery, or other relief under F.R.B.P. 7026 must attach to the motion only that portion of the deposition, interrogatory, request for document, or request for admissions that is the subject of the objection. An attachment to the motion must conform with the requirements of L.B.R. 5005-1 and any administrative order issued regarding electronic case filing.

(b) *Documentation Not in Record.* When discovery documentation not previously in the record is needed for appeal purposes, upon motion and order of the Court, or by stipulation of counsel, the necessary discovery papers must be filed with the clerk. See Local Rule 5.4(d) of the Local Rules of the United States District Court for the Middle District of Pennsylvania (https://www.pamd.uscourts.gov/).

(c) *Original Response and Certificate of Service.* A party who serves a discovery request must retain the original response as its custodian. Certificates of service of discovery materials must not be filed separately with the clerk. The original of any deposition upon oral examination must be retained by the party taking such deposition. See Local Rule 5.4(b) of the Local Rules of the United States District Court for the Middle District of Pennsylvania (https://www.pamd.uscourts.gov/).

Rule 7007-1 *Motions in Adversary Proceedings.*

(a) *Caption and Title.* A motion filed in an adversary proceeding must contain a descriptive title of the motion in addition to the complete adversary caption. The caption must be substantially in compliance with the Caption for Use in Adversary Proceeding (Official Form 416D).

(b) *Response.* No response to any motion filed in an adversary proceeding pursuant to F.R.C.P. 12(b)(1)-(6), as made applicable through F.R.B.P. 7012(b), is required unless otherwise ordered by the Court. The response to any other motion must be filed and served within fourteen (14) days after service of the motion. If a response is required and no response is timely filed, the motion may be deemed uncontested, and the Court may dispose of the motion.

(c) *Continuances.* A request for continuance of a trial date must be made in conformity with L.B.R. 9013-4.

(d) *Hearing.* Oral argument or hearing on a motion filed in an adversary proceeding will be held only if requested by the Court.

(e) *Proposed Order.* A proposed order of Court as required under L.B.R. 9013-1(b) must be filed as an attachment to any motion and other pleading requesting relief.

COMMENTS: *L.B.R. 7007-1 was amended effective December 1, 2017, to clarify the conditions under which an answer or response is due to any motion filed within an adversary proceeding.*

Rule 7016-1 *Pre-Trial Procedure.*

(a) *Applicability of Fed. R. Civ. P. 16(b).* Unless the Court directs otherwise, an adversary proceeding is exempt from the provisions of Fed. R. Civ. P. 16(b), as incorporated in F.R.B.P. 7016.

(b) *Scheduling Order.* Notwithstanding subdivision (a), the Court generally will issue a scheduling order.

(c) *Pre-trial Motions.* The Court may dispose of pre-trial motions in summary fashion at any time during their pendency.

Rule 7021-1 *Misjoinder and Non-Joinder of Parties.*

When an adversary is severed into two or more proceedings, a separate filing fee is payable to the clerk for each severed proceeding.

Rule 7041-1 *Notice of Dismissal of Adversary Proceeding.*

Before any adversary proceeding is involuntarily dismissed pursuant to F.R.B.P. 7041, a thirty (30) day notice will be given by the clerk to each party whose claim is to be dismissed and to the counsel of record for that party, if any.

Rule 7055-1 *Default - Failure to Prosecute.*

Subject to L.B.R. 7041-1, an adversary complaint may be dismissed if neither a response nor a motion for default judgment has been filed within forty-five (45) days after the response date to the complaint. If a motion for default judgment is filed, the Court may enter judgment by default against the defendant seven (7) days after the motion has been served on the defendant.

Rule 7055-2 *Order of Default.*

The order of default may award damages for the amount to which the plaintiff is entitled if it is a sum certain or can be made certain by computation. If damages cannot be computed from the complaint, they must be assessed at a hearing at which the issues are limited to the amount of the damages.

Rule 7056-1 *Summary Judgment - Applicability of Local Rule 56.1.*

Local Rule 56.1 for the United States District Court for the Middle District of Pennsylvania (https://www.pamd.uscourts.gov/) applies in adversary proceedings.

Rule 7067-1 *Registry Funds.*

(a) *Deposit Funds into Court Registry Account.* A party who wishes to deposit funds while litigation is pending may move the Court to have such funds deposited into the Court's registry account. The movant must attach a proposed order directing investment, which includes the following:

(1) the amount to be invested; and

(2) the mode of deposit (i.e., check, wire transfer).

(b) *Receipt of Funds.*

(1) No funds may be sent for deposit in the Court's registry without first obtaining a Court order signed by the presiding judge in the case or proceeding.

(2) The party making the deposit, or transferring the funds, to the Court's registry account must serve the order permitting the deposit or transfer on the clerk.

(3) Unless provided for elsewhere in this rule, all monies ordered to be paid to the Court in any case pending or adjudicated must be deposited with the Treasurer of the United States in the name and to the credit of this Court pursuant to 28 U.S.C. § 2041 through depositories designated by the Treasury to accept such deposit on its behalf.

(c) *Investment of Registry Funds.*

(1) Where, by order of the Court, funds on deposit with the Court are to be placed in some form of interest-bearing account or invested in a Court-approved, interest-bearing instrument in accordance with Rule 67 of the Federal Rules of Civil Procedure, the Court Registry Investment System ("CRIS"), administered by the Administrative Office of the United States Courts under 28 U.S.C. § 2045, is the only investment mechanism authorized.

(2) Interpleader funds deposited under 28 U.S.C. § 1335 meet the IRS definition of a "Disputed Ownership Fund" ("DOF"), a taxable entity that requires tax administration. Unless otherwise ordered by the Court, interpleader funds shall be deposited in the DOF established within the CRIS and administered by the Administrative Office of the United States Courts, which shall be responsible for meeting all DOF tax administration requirements.

(3) The Director of the Administrative Office of the United States Courts is designated as custodian for all CRIS funds. The Director or the Director's designee will perform the duties of ~~the~~ custodian. Funds held in the CRIS remain subject to the control and jurisdiction of the Court.

(4) Money from each case deposited in the CRIS must be "pooled" together with those on deposit with Treasury to the credit of other Courts in the CRIS and used to purchase Government Account Series securities through the Bureau of Public Debt, which will be held at Treasury, in an account in the name and to the credit of the Director of Administrative Office of the United States Courts. The pooled funds will be invested in accordance with the principles of the CRIS Investment Policy as approved by the Registry Monitoring Group.

(5) An account will be established in the CRIS Liquidity Fund titled in the name of the case giving rise to the deposit invested in the fund. Income generated from fund investments will be distributed to each case based on the ratio each account's principal and earnings has to the aggregate principal and income total in the fund after the CRIS fee has been applied. Reports showing the interest earned and the principal amounts contributed in each case will be prepared and distributed to each Court participating in the CRIS and made available to litigants and/or their counsel.

(6) For each interpleader case, an account shall be established in the CRIS Disputed Ownership Fund ("DOF"), titled in the name of the case giving rise to the deposit invested in the fund. Income generated from fund investments will be distributed to each case after the DOF fee has been applied and tax withholdings have been deducted from the fund. Reports showing the interest earned and the principal amounts contributed in each case will be available through the FedInvest/CMS application for each Court participating in the CRIS and made available to litigants and/or their counsel. On appointment of an administrator authorized to incur expenses on behalf of the DOF in a case,

the case DOF funds should be transferred to another investment account as directed by Court order.

(d) *Fees and Taxes*.

(1) The custodian is authorized and directed to deduct from all deposited CRIS funds (excluding DOF funds) a fee, as stated on the Court's Miscellaneous Fee Schedule. This fee is for the management of investments in the CRIS.

(2) The custodian is authorized and directed to deduct from all deposited DOF funds a fee, as stated on the Court's Miscellaneous Fee Schedule. This fee is for the management of investments and tax administration in the DOF. The custodian is further authorized and directed to withhold and pay federal taxes due on behalf of the DOF.

(3) The applicable CRIS or DOF fees must be deducted by the custodian from interest earnings before a pro rata distribution is made to Court cases.

(e) *Motion to Withdraw Funds.* In order to withdraw deposited funds, a motion for disbursement of invested registry funds and a proposed order must be filed with the Court. The proposed order for disbursement of invested registry funds must include the name and address of the payee in addition to the total amount of the principal and interest (if the interest is not known, the order may read "plus interest") that will be disbursed to each payee.

(f) *Order for Payment.* After entry of an order for disbursement, the parties to whom funds are to be disbursed must provide to the clerk their tax identification numbers or social security numbers and complete any forms required by the Internal Revenue Service for the reporting of earned interest. Disbursements may not be made until this information and the required Internal Revenue Service forms are submitted to the clerk.

(g) *Deduction of Fees.* The custodian is authorized and directed to deduct the investment services fee for the management of investments in CRIS and the registry fee for maintaining accounts deposited with the Court. The investment services fee is assessed from interest earnings to the pool according to the Court's Miscellaneous Fee Schedule and is to be assessed before a pro rata distribution of earnings to Court cases. The registry fee is assessed by the custodian from each case's pro rata distribution of the earnings and is to be determined on the basis of the rates published by the Director of the Administrative Office of the United States Courts as approved by the Judicial Conference of the United States.

COMMENTS: *L.B.R. 7067-1 was amended effective December 1, 2016, to comply with new IRS directives concerning certain registry funds. Withholding of federal taxes within the CRIS Disputed Ownership Fund will commence with interpleader registry deposits made on and after April 1, 2017. For interpleader deposits made up until that date, the Court will appoint, by separate order, a tax administrator.*

PART VIII
APPEALS TO DISTRICT COURT OR BANKRUPTCY APPELLATE PANEL

Rule 8009-1 *Designation of Record.*

Each designation of items to be included in the record of appeal must clearly indicate each document to be included in the record by listing its title, filing date, and document number, if any, as it appears on the case or adversary docket.

Rule 8010-1 *Completion of Record.*

The clerk is not responsible for the failure to transmit items not designated in accordance with L.B.R. 8009-1.

PART IX
GENERAL PROVISIONS

Rule 9001-1 *Definitions.*

Unless inconsistent within the context of a particular rule, the following terms are defined for the purposes of the Local Bankruptcy Rules and Local Bankruptcy Forms as follows:

(a) "*Amended plan*" means a plan modified under the provisions of 11 U.S.C. §§ 942, 1127, 1223, 1229, 1323, and 1329. The terms "modified" and "amended" are used interchangeably.

(b) "*Chapter*" means one of the chapters of Title 11 of the Bankruptcy Code.

(c) "*Clerk*" means the office of the Clerk of the United States Bankruptcy Court for the Middle District of Pennsylvania.

(d) "CM/ECF filer" means a filing user registered with the clerk to file, serve, and receive documents through the electronic case filing system (CM/ECF) established by the United States Bankruptcy Court for the Middle District of Pennsylvania.

(e) "*Contract amount*" means the amount of principal and interest payable each month under the terms of a note secured by a mortgage without the inclusion of late fees or other default fees or charges.

(f) "*Counsel of record*" means any attorney who has entered an appearance on the docket of a bankruptcy case or who has filed a paper on behalf of a party. An attorney remains counsel of record until an order authorizing withdrawal has been entered or another attorney has entered an appearance on behalf of the party.

(g) "*Electronic filer*" means an individual or entity submitting documents to the clerk for filing using any of the Court's available electronic filing systems, including CM/ECF, the Electronic Document Submission System ("EDSS"), or the Electronic Proof of Claim Systems ("ePOC").

(h) "*F.R.B.P.*" means The Federal Rules of Bankruptcy Procedure.

(i) "*Hearing required notice*" is a notice that may provide an objection/response deadline and sets the matter for hearing. The hearing will take place at the date, time, and location indicated in the notice regardless of whether or not objections/responses are filed.

(j) "*Party in interest*" means a person or entity who may be affected by a bankruptcy proceeding. In these rules, a party in interest also includes a creditor.

(k) "*Passive notice*" is a notice stating that if no response is filed, the Court may enter the requested relief without further notice or hearing.

(l) "*Retainer agreement*" means an agreement between a client and an attorney in which the client deposits funds with the attorney for services to be performed whether entered before the filing of a bankruptcy petition or during the pendency of the case.

(m) "*Schedules and statements*" include all documents required to be filed by a debtor under 11 U.S.C. § 521.

(n) "*Semi passive notice*" is a notice setting an objection/response deadline and a proposed hearing date if objections/responses are filed. If no objections/responses are filed, the Court may enter an order without conducting a hearing. If objections/responses are filed, the matter will proceed to hearing at the date, time, and location indicated in the notice. If a default order has not been signed and entered on the docket, the parties or their counsel are required to appear in Court.

COMMENTS: *L.B.R. 9001-1 was amended effective September 1, 2014, to add definitions for the terms "Hearing required notice" and "semi passive notice".*

Rule 9003-1 *Ex Parte Relief.*

The following requests are not subject to the general prohibition against *ex parte* contact under F.R.B.P. 9003(a):

(a) for conversion or dismissal under 11 U.S.C. §§ 1208(b) or 1307(b);

(b) for entry of a wage order under 11 U.S.C. §§ 1225(c) or 1325(c);

(c) for approval to pay filing fees in installments;

(d) for waiver of filing fees for documents including the bankruptcy petition;

(e) to limit notice;

(f) for admission *pro hac vice*;

(g) for emergency relief;

(h) for an extension of time to file documents required under 11 U.S.C. § 521;

(i) for protection from or application of disclosure of information under 11 U.S.C. § 107; and

(j) for relief after dismissal of an involuntary case.

Rule 9004-1 *Caption of Pleadings.*

Unless additional information is required under 11 U.S.C. § 342(c), any pleading filed with the clerk in a contested matter must contain a caption substantially in compliance with L.B.F. 9004-1. Unless additional information is required under 11 U.S.C. § 342(c), any pleading filed with the clerk in an adversary proceeding must contain a caption substantially in compliance with the Caption for Use in Adversary Proceeding (Official Form 416D).

COMMENTS: *L.B.R. 9004-1 was amended effective June 1, 2016, to provide for the use of Official Form 416D - Caption for Use in Adversary Proceeding and to eliminate L.B.F. 9004-2.*

Rule 9010-1 *Attorneys - Notice of Appearance.*

(a) *General Appearance.* An attorney who files with the clerk any application, motion, stipulation, or other document, other than as set forth in subdivision (b), is deemed to have entered an appearance for the party on whose behalf the document is filed.

(b) *Limited Appearance.* An attorney filing a proof of claim or interest is deemed to have entered an appearance only for the purpose of any objection that may be filed to that claim.

(c) *Change of Address.* When attorneys, or parties representing themselves, change their e-mail or physical addresses, they are required to provide notification as follows:

(1) CM/ECF filers must immediately update their addresses in the ECF system. If an address changes in a specific case, CM/ECF filers must docket a change of address in each case in which the change should appear to enable the clerk to update the information.

(2) All other filers must notify the clerk in writing of their new address so that the clerk may enter it in the ECF system. If an attorney has entered an appearance in more than one case, he also must file with the clerk a listing of all such cases so the new address may be entered by the clerk on the docket of each case.

(d) *Withdrawal of Appearance.* The debtor's attorney or an attorney in a pending adversary or contested matter may not withdraw his or her appearance except upon motion, after hearing and by order of the Court, unless another attorney eligible to appear before the Court enters his or her appearance simultaneously with the request for withdrawal of appearance. If the firm has not entered an appearance in a case, it must enter an appearance in the cases it is retaining. An attorney may not submit a change of address as a substitute for filing a motion to withdraw.

(e) *Notice to Parties.* Unless service is made electronically through the ECF system, an attorney who files a request to note change of address must mail a copy of same to any

attorney who has entered an appearance in an adversary proceeding or contested matter that is pending at the time the request is filed.

Rule 9010-2 *E-mail Address.*

In addition to the requirements of F.R.B.P. 9010(b), an attorney must provide the attorney's e-mail address.

Rule 9011-1 *Attorneys' Duties.*

Subject to L.B.R. 9010-1(b) an attorney who files a petition in bankruptcy on behalf of a debtor, or who later enters an appearance on behalf of a debtor - other than as special counsel - is counsel of record in all matters arising during the administration of the case.

Rule 9013-1 *Motion Practice.*

(a) *Title of Motion and Answer.* The title of each motion must identify the party filing the motion and the nature of the relief sought. Any answer filed must identify the party filing the answer and the motion to which the party is responding. The answer must include in the caption the docket number reference of the document to which the party is responding.

(b) *Orders to Accompany Motions.* Each motion must be accompanied by a proposed form of order which, if entered by the Court, would grant the relief sought by the motion. The proposed order must be prepared in accordance with the Administrative Procedures available on the Court's website (www.pamb.uscourts.gov).

(c) *Service of Motion - Generally.* Unless service is made electronically through the ECF system, the moving party must serve a copy of its motion and attachments on the following:

(1) the respondent;

(2) the debtor;

(3) any committee appointed pursuant to 11 U.S.C. § 1102; and

(4) such other entities as the Court may direct.

(d) *Service of Motion to Dismiss or Convert.* Unless service is made electronically through the ECF system, the moving party must serve a copy of a motion to dismiss or convert a case to another chapter on the debtor and on debtor's counsel, in addition to those parties listed in paragraph (c).

(e) *Service of Motion Against Counsel.* Unless service is made electronically through the ECF system, the moving party must serve a copy of a motion seeking sanctions or other relief against a party's counsel on the party and on counsel.

Rule 9013-2 *Contents and Length of Legal Briefs.*

(a) Except as otherwise provided below, no brief filed in any matter in this Court (including adversary or contested matters) shall exceed fifteen (15) pages in length.

(b) A brief may exceed fifteen (15) pages provided it does not exceed 5,000 words. If a brief is filed in accordance with this subsection, counsel, or an unrepresented party, must include a certificate (subject to Fed. R. Bankr. P. 9011) that the brief complies with the word-count limit described in this subsection. The person preparing the certificate may rely on the word count feature of the word processing system used to prepare the brief. The certificate must state the actual number of words in the brief.

(c) No brief exceeding the limits described in this rule may be filed without prior authorization from the Court. Any motion seeking such authorization shall specify the length of the brief requested and shall be filed at least two (2) working days before the brief is due.

(d) Briefs shall contain complete citations of all authorities relied upon, including whenever practicable, citations both to official and unofficial reports. A copy of any unpublished opinion that is cited must accompany the brief as an attachment. The brief of each party, if more than fifteen (15) pages in length, shall contain a table of contents, with page references, and table of citations of the cases, statutes and other authorities referred to therein, with references to the pages at which they are cited. A brief may address only one motion, except in the case of cross motions for summary judgment.

Rule 9013-3 *Certification of Service.*

Each document filed with the Court, except for those served through the Court's electronic filing system, must include a certificate of service containing the following information:

(a) the title of the paper served;

(b) the names and addresses of all persons upon whom the paper has been served;

(c) the entities the persons served represent; and

(d) a description of when and how service was made.

Rule 9013-4 *Continuances.*

A request for a continuance must be made in writing and contain a certification that counsel making the request has sought the concurrence of all interested parties and that concurrence has been either granted or denied. A request may be denied if concurrence has not been obtained. If a request is the first request for a continuance of the matter, the request should be submitted using L.B.F. 9013-4. All further requests for a continuance must be made by motion. Requests received by the Court within twenty-four (24) hours of the hearing will not be considered except in emergency situations, and the request will be granted only in the Court's discretion. A party who obtains a continuance must immediately notify other parties of the continuance by email, telephone, facsimile transmission, or first class mail, whichever method is necessary to ensure that notice is received no later than twenty-four (24) hours prior to the time set for the hearing.

COMMENTS: *L.B.R. 9013-4 was amended effective December 1, 2009, to provide that a continuance request may be denied if concurrence has not been obtained from all interested parties.*

Rule 9014-1 *Default and Summary Judgment.*

F.R.B.P. 7055 and 7056 as well as L.B.R. 7055-1 and 7002-1 do not apply in contested matters except as otherwise provided in the Local Rules. If a response is required but none is filed, the Court may, without hearing, grant the relief requested in the motion.

Rule 9018-1 *Motions to Publicly File Redacted Documents and to File Unredacted Documents Under Seal.*

(a) *Generally.* Unless otherwise required by these Local Rules, the Federal Rules of Bankruptcy Procedure, the Bankruptcy Code, or order of this Court, requests to file under seal shall consist of two parts: (i) a motion to seal; and (ii) the documents to be sealed.

(b) *Motion to Seal.* The motion to seal shall include:

(1) the grounds for sealing;

(2) the identity of any parties, other than the moving party, who will have access to the documents to be sealed;

(3) the duration of the seal;

(4) the time when the movant will either unseal the documents or retrieve the physical documents (if any) at the conclusion of the matter;

(5) a redacted copy of the documents sought to be sealed with only those redactions necessary to preserve confidentiality, made in good faith; and

(6) a proposed order that contains language indicating the order is without prejudice to the rights of any party in interest, or the United States Trustee, to seek to unseal the documents, or any part thereof.

(c) *Documents to be Sealed.* Upon filing the motion to seal, the moving party must electronically file a copy of the unredacted documents sought to be sealed with the clerk's office. The documents must be electronically filed using a special ECF docket entry conspicuously marked "DOCUMENTS FILED UNDER PENDING MOTION TO SEAL." Access to documents filed pursuant to this subparagraph shall be strictly limited to the clerk of Court and his or her designees, as well as to the presiding judge and his or her chambers.

COMMENTS: *L.B.R. 9018-1 was amended effective December 1, 2017, to provide a uniform standard procedure for electronically filing a motion under seal. The rule distinguishes between the motion to seal, which should be filed publicly on the docket, and the documents to be sealed. The motion should include a redacted copy of the documents to be sealed. The time to file and serve the underlying motion for which purpose the motion to seal is being made should be in accordance with all applicable rules pertaining to service of the underlying motion.*

Rule 9019-1 *Settlements and Agreed Orders.*

(a) *Settlement of Adversary Matters and Contested Matters.* In an adversary proceeding or contested matter, whenever the parties have reached a settlement, they must file a stipulation resolving the matter before the hearing date, submit a Request to Remove from the Hearing/Trial List (L.B.F. 9019-1), or announce the settlement at the hearing set on the matter. If a Request to Remove form is filed, within the time specified in the form, the moving party or plaintiff must file a stipulation or stipulated order and any requisite motion to compromise or settle. Failure to file a stipulation or stipulated order may result in the dismissal of the matter or proceeding. A motion to extend the time to comply with this rule or to re-list the matter for hearing may be filed within the period specified for filing a stipulation or stipulated order in the Request to Remove form, but the motion will be granted only upon cause shown.

(b) *Hearing.* When a matter has been settled and a stipulation has been filed or is expected to be filed within a period not to exceed sixty (60) days, the hearing before the Court may be stricken by filing a Request to Remove form (L.B.F. 9019-1). A Request to Remove form must be filed with the Court no later than twenty-four (24) hours before the hearing.

Rule 9019-2 *Alternative Dispute Resolution.*

(a) *Setting Mediation.* The Court may set a case for mediation provided consideration is given to any reasons advanced by the parties as to why such mediation would not be

in the best interest of justice. Once set for mediation, the matter can be removed from mediation by the Court or on application by the mediator.

(b) *Request for Mediation*. The parties may request a case be assigned by the Court to mediation by completing and filing L.B.F. 9019-2.

(c) *Assigning Matters and Cases.* The Court may assign to mediation any adversary proceeding or contested matter or any issue within such adversary proceeding or contested matter.

(d) *Certification of Mediators.*

(1) The Court may certify as many mediators as determined to be necessary under this rule.

(2) An individual may be certified to serve as a mediator if:

(A) he or she has been a member of the bar of the highest Court of a state or the District of Columbia for a minimum of five (5) years;

(B) he or she is admitted to practice before this Court;

(C) he or she has successfully completed a mediation training program established or recognized by the District Court or the Bankruptcy Court for the Middle District of Pennsylvania; and

(D) he or she has been determined by the appointing Court to be competent to perform the duties of a mediator.

(3) The Court will solicit qualified individuals to serve as mediators.

(4) Each individual certified as a mediator must take the oath or affirmation prescribed by 28 U.S.C. § 453 before serving as a mediator.

(5) The clerk must maintain a list of all persons certified as mediators.

(6) The appointing judge may remove anyone from the list of certified mediators for cause.

(7) Persons acting as mediators under this rule are assisting the Court in performing its judicial function. They must be disqualified for bias or prejudice as provided by 28 U.S.C. § 144 and must disqualify themselves in any action in which they would be required under 28 U.S.C. § 455 to disqualify themselves if they were a justice or judge.

(e) *Compensation and Expenses of Mediators.* A mediator who accepts a case for mediation initially volunteers the time expended to prepare for and conduct a

mediation conference or conferences lasting up to a total of four (4) hours. After completion of four (4) hours service, the mediator may either:

(1) continue to volunteer the mediator's time; or

(2) give the mediation parties the option to agree to pay the mediator his prevailing hourly rate for bankruptcy services for the additional time spent on the mediation. The parties must each pay a *pro rata* share of the mediator's compensation, unless they agree among themselves to a different allocation. A motion to enforce a party's obligation to compensate a mediator is governed by F.R.B.P. 9014.

(f) *Frequency of Service.* An individual certified as a mediator will not be called upon more than twice in a twelve (12) month period to serve as a mediator without the prior approval of the mediator.

(g) *Scheduling Mediation Conference.*

(1) Upon referral of a case to mediation, the Court will serve the order of referral to the mediator, all counsel, and any unrepresented party directing the mediator to establish the date, place, and time of the mediation session. The order will include the address, telephone number, email address, and facsimile number of the mediator, counsel, and unrepresented parties. The date of the mediation session must be a date within thirty (30) days from the date of the order of referral.

(2) The appointment is effective unless the designee rejects the appointment within seven (7) days.

(3) Upon docketing of the order of referral to mediation, the clerk must transmit to the mediator, either by email or regular mail, a copy of the docket sheet that reflects all filings to date. The mediator may identify to the clerk those filed documents which the mediator wishes to review for the mediation. Unless otherwise ordered by the Court, the clerk will provide the mediator with electronic or paper copies of the requested documents free of charge.

(4) A mediator may change the date and time for the mediation session if the session takes place within forty-five (45) days of the date of the order of referral. Any continuance of the session beyond forty-five (45) days must be approved by the Court.

(h) *The Mediation Process*.

(1) Not later than seven (7) days before the initial conference, each party must deliver or send a facsimile or email to the mediator a mediation conference memorandum no longer than two (2) pages, summarizing the nature of the case and the party's position on:

(A) the major factual and legal issues affecting liability and damages;

(B) the relief sought by each party; and

(C) the position of the parties relative to settlement.

(2) The memoranda required by this subdivision are solely for use in the mediation process and are not to be filed with the clerk.

(i) *The Mediation Session.*

(1) The mediation session must take place on the date and at the time set forth by the mediator. The mediation session must take place at a neutral setting as designated by the mediator that may include the mediator's office. A party must not contact or forward any document to the mediator unless the mediator requests the information or unless as otherwise provided under these rules.

(2) Counsel primarily responsible for the case and any unrepresented party must attend the mediation session. All parties or principals of parties with decision-making authority must attend the mediation session in person, unless attendance is excused by the mediator for good cause shown. Willful failure to attend the mediation conference must be reported to the Court and may result in the imposition of sanctions. The participants must be prepared to discuss:

(A) all liability issues;

(B) all damage issues;

(C) all equitable and declaratory remedies if such are requested; and

(D) the position of the parties relative to settlement.

(3) Unless otherwise provided in this rule, and as may be necessary to the reporting of or the processing of complaints about unlawful or unethical conduct, nothing communicated during the mediation process - including any oral or written statement made by a party, attorney, or other participant, and any proposed settlement figure stated by the mediator or on behalf of any party - may be placed in evidence, made known to the trial Court or jury, or construed for any purpose as an admission. No party may be bound by anything done or said during the mediation process except to enforce a settlement agreement or any other agreement achieved in that process.

(4) In the event the mediator determines that no settlement is likely to result from the mediation session, the mediator must terminate the session and promptly send a report to the Court that there has been compliance with the requirements

of these paragraphs, but that no resolution has been reached. In the event that a settlement is achieved at the mediation session, the mediator must send a written report to the judge to whom the case is assigned stating that a settlement has been achieved. The parties are responsible for the circulation of any required notice of settlement.

(5) Notwithstanding the above paragraph, the mediator must submit a written report to the Court advising the Court of the status of the mediation within sixty (60) days after the order of appointment of the mediator.

(6) No one may have a recording or transcript made of the mediation session, including the mediator, unless otherwise agreed to by the parties.

(7) The mediator cannot be called as a witness at trial.

(j) *Neutral Evaluator.* Any time after an action or proceeding has been filed, the action may be referred to a neutral evaluator to be selected with the approval of the parties.

(k) *Relationship to Other Procedures.* Nothing in this rule modifies the provisions of Fed.R.Civ.P. 16 and 26, or L.B.R. 7016-1 or any order of Court, nor does it preclude the use of any kind of mediation outside of the mediation process established by this rule or the use of any other means of alternative dispute resolution.

Rule 9019-3 *Mortgage Modification Mediation Program.*

(a) *Program Description.* The Mortgage Modification Mediation Program ("MMM Program") is available to any chapter 13 debtor seeking to modify a mortgage obligation with respect to his or her principal residence. In order to qualify for the MMM Program, debtor must meet the following criteria:

(1) Debtor has regular, verifiable income and is the owner/occupant of a residential property used as debtor's primary residence.

(2) Debtor has a mortgage balance of less than $729,750.00, and the mortgage payment is unaffordable due to financial hardship.

(3) Debtor will make monthly post-petition mortgage payments of seventy-five percent (75%) of debtor's current mortgage payment starting with the next monthly scheduled due date (plus any grace period, after the Motion to Participate is filed and granted). Debtor agrees that in the event debtor misses one of the modified mortgage payments, the lender and/or servicer for the mortgagee of record ("Mortgage Creditor") may file a motion for relief from the automatic stay and seek removal of debtor from the MMM Program.

(4) Debtor has filed complete bankruptcy schedules and must supply Mortgage Creditor with the last two (2) years' signed tax returns, last sixty (60) days' payment advices, and any other document Mortgage Creditor requests. Failure

to supply the documents within thirty (30) days of admission to the MMM Program is grounds for dismissal from the MMM Program.

(5) If a mediator is used, debtor must pay a mediation fee of $125.00 to the mediator. Mortgage Creditor must also pay $125.00 to the mediator. Neither fee is refundable under any circumstances. Mediation is to be completed within sixty (60) days, unless otherwise extended consistent with the paragraphs contained herein.

(b) *Application to the MMM Program.*

(1) *Motion.* To seek admission to the MMM Program, debtor must file a Motion to Participate in the Mortgage Modification Mediation Program ("Motion to Participate"), together with the Notice of Filing of Motion to Participate in Mortgage Modification Mediation Program, L.B.F. 9019-3(a), and serve copies of same on Mortgage Creditor and any counsel of record. In the Motion to Participate, debtor must state whether he wishes to utilize the DMM Portal, or such other portal as may be designated by the Court, (the "Portal") or to communicate directly with Mortgage Creditor and its counsel. Additional information related to the Portal is posted on the Court's website at http://www.pamb.uscourts.gov and may be updated from time to time by the Court.

(2) *Response.* Mortgage Creditor will have twenty-one (21) days to file a response to the Motion to Participate.

(A) *Acceptance.* If Mortgage Creditor agrees to participation, Mortgage Creditor will file a Consent to Participation in Mortgage Modification Mediation Program ("Creditor Consent Form"), L.B.F. 9019-3(b) and the Court will enter an Order Granting Entry in MMM Program. Prior to filing the Creditor Consent Form, the parties will confer as to whether they wish to utilize the Portal or to communicate directly with one another outside the Portal for the modification process. The Creditor Consent Form will reflect the decision of the parties. Should the Creditor Consent Form not contain a designation as to whether or not the Portal will be used, the preference stated by debtor in the Motion to Participate will govern. Should both the Motion to Participate and the Creditor Consent Form fail to include a designation as to the Portal, the parties will be deemed to have opted not to use the Portal.

(B) *Objection.* If Mortgage Creditor objects to participation, a written response stating the basis for the objection must be filed with the Court. Upon filed written objection, the Motion to Participate will be denied without prejudice to re-filing.

(C) *Failure to Respond.* If Mortgage Creditor fails to file either the Creditor Consent Form or an objection to participation within twenty-one (21) days, Mortgage Creditor will be deemed to have waived any objection and the Court may enter an Order Granting Entry in MMM Program ("Participation Order") without further notice or hearing. The preference elected by debtor as to the Portal in the Motion to Participate will govern. Should the Motion to Participate fail to elect a preference, the parties will be deemed to have opted not to use the Portal.

(D) *Re-filing the Motion to Participate.* A Motion to Participate may be re-filed after an objection by Mortgage Creditor, only with written concurrence of Mortgage Creditor unless the motion includes information demonstrating a material change in debtor's circumstances that either renders Mortgage Creditor's prior objection moot or otherwise rebuts the objection. If Mortgage Creditor files an objection to the refiled Motion to Participate, the Court may set a hearing thereon or rule on the refiled Motion to Participate without a hearing.

(c) *Proceeding in the MMM Program Using Portal.*

(1) Within fourteen (14) days of entry of a Participation Order, unless not previously registered, Mortgage Creditor must, register with the Portal and post on the Portal the required loss mitigation application to be completed by debtor.

(2) Debtor must upload and submit a completed loss mitigation application on the Portal within thirty (30) days after Mortgage Creditor registers with the Portal. If Mortgage Creditor is registered with the Portal at the time the Participation Order is entered, debtor will be required to upload and submit a completed loss mitigation application on the Portal within thirty (30) days after such Participation Order is entered. Failure to do so may result in debtor being removed from the MMM Program upon written motion of Mortgage Creditor.

(3) Within fourteen (14) days after debtor's submission of the loss mitigation application, Mortgage Creditor must designate, via the Portal, a specific individual who is the single point of contact for the loss mitigation process. The designated representative will be responsible for all communications in the Portal with debtor. Mortgage Creditor must provide the designated representative's name, title, email address, and either a direct telephone number or direct extension. At the same time, Mortgage Creditor must acknowledge, via the Portal, receipt of debtor's loss mitigation application and advise debtor of any additional or missing information required for Mortgage Creditor to proceed with its review.

(4) Debtor must promptly submit any and all additional or missing information required for Mortgage Creditor to proceed with its review, but in no event may the documents be submitted more than twenty-one (21) days after the date they

are requested by Mortgage Creditor. Mortgage Creditor must continue reviewing the loss mitigation application in good faith while awaiting submission of additional or missing information.

(5) Once the parties have opted to utilize the Portal, all material communications between debtor and Mortgage Creditor must be conducted exclusively through the Portal.

(6) In the event that the loan being reviewed under the MMM Program becomes subject to a transfer or the service rights are scheduled to be assigned to a new servicer, then no less than fourteen (14) days prior to the scheduled transfer/assignment, Mortgage Creditor must file a Proposed Order Substituting MMM Servicer, L.B.F. 9019-3(c), and update the Portal to identify the successor creditor ("Substituted Creditor"). In addition to updating the Portal, Mortgage Creditor must forthwith provide Substituted Creditor with all loss mitigation notes, applications, and correspondence related to the pending loss mitigation review. Substituted Creditor is responsible for ensuring all such documents are received from Mortgage Creditor and must continue the loss mitigation review without requiring a new Motion to Participate or initial application from debtor. Within thirty (30) days of the service transfer, Substituted Creditor must designate a representative who is the single point of contact for the loss mitigation process on behalf of Substituted Creditor. The designated representative is responsible for all communications in the Portal with debtor. Substituted Creditor must provide the designated representative's name, title, email address, and either a direct telephone number or direct extension. To the extent updated or additional documents are required by Substituted Creditor in order to complete the loss mitigation review, Substituted Creditor must request such information or documents contemporaneously with designating its single point of contact on the Portal.

(d) *Proceeding in the MMM Program Outside the Portal.*

(1) Upon entry of a Participation Order, Mortgage Creditor must provide debtor with the required loss mitigation package and document checklist within fourteen (14) days. Documents that may be requested include, but are not limited to, IRS Form 4506-T, utility bills, bank statements, payment advices, and federal tax returns.

(2) Within thirty (30) days of the entry of the Participation Order, debtor must provide the last two (2) years' signed tax returns, last sixty (60) days' payment advices, and any other document Mortgage Creditor requests. Failure to do so may result in debtor being removed from the MMM Program upon written motion of Mortgage Creditor.

(3) Within fourteen (14) days after debtor's submission of the loss mitigation application, Mortgage Creditor must designate, via written notice to debtor and

debtor's counsel, a specific individual who is the single point of contact for the loss mitigation process. The designated representative is responsible for all communications with debtor with respect to the loss mitigation review. Mortgage Creditor must provide the designated representative's name, title, email address, and either a direct telephone number or direct extension. At the same time, Mortgage Creditor must acknowledge receipt of debtor's loss mitigation application and advise debtor of any additional or missing information required for Mortgage Creditor to proceed with its review.

(4) Debtor must promptly submit all additional or missing information required for Mortgage Creditor to proceed with its review, but in no event may the documents be submitted more than twenty-one (21) days after the date they are requested by Mortgage Creditor. Mortgage Creditor must continue reviewing the loss mitigation application in good faith while awaiting submission of additional or missing information.

(5) In the event that the loan being reviewed under the MMM Program becomes subject to a transfer or the service rights are scheduled to be assigned to a new servicer, then no less than fourteen (14) days prior to the scheduled transfer/assignment, Mortgage Creditor must file a Proposed Order Substituting MMM Servicer, L.B.F. 9019-3(c), identifying the successor creditor ("Substituted Creditor"). Mortgage Creditor must forthwith provide Substituted Creditor with all loss mitigation notes, applications, and correspondence related to the pending loss mitigation review. Substituted Creditor is responsible for ensuring all such documents are received from Mortgage Creditor and must continue the loss mitigation review without requiring a new Motion to Participate or initial application from debtor. Within thirty (30) days of the service transfer, Substituted Creditor must designate a representative who is the single point of contact for the loss mitigation process on behalf of Substituted Creditor and provide written notice thereof to debtor and debtor's counsel of record. The designated representative is responsible for all loss mitigation communications with debtor. Substituted Creditor must provide the designated representative's name, title, email address, and either a direct telephone number or direct extension. To the extent updated or additional documents are required by Substituted Creditor in order to complete the loss mitigation review, Substituted Creditor will request such information or documents contemporaneously with providing written notice of its single point of contact.

(e) *Request for Status Conference and/or Appointment of Mediator.*

(1) Upon the motion of either party, the Court may schedule a status conference concerning the loss mitigation process. Such motion must include the grounds for requesting said conference along with a description of the efforts made to resolve any differences prior to requesting the status conference. The motion must be served upon the other party and his counsel. The Court may, on its own initiative, schedule a status conference.

(2) At the time of the status conference, both parties must be prepared to provide the Court with sufficient detail as to the status of the loss mitigation review so that the Court can assess whether further two-party negotiations are likely to be productive and/or whether the appointment of a mediator may be beneficial to the parties.

(3) After the status conference, if the Court determines that the appointment of a mediator may be beneficial, the Court will issue an order of referral to the mediator, all counsel, and any unrepresented party, directing the mediator to establish the date, place, and time of the mediation session. The order will include the address, telephone number, email address, and facsimile number of the mediator, counsel, and unrepresented parties. The date of the mediation session will be a date within thirty (30) days from the date of the order of referral.

(4) The appointment is effective unless the mediator rejects the appointment within seven (7) days of the date of the order of referral.

(5) Upon docketing of the order of referral to mediation, the clerk must transmit to the mediator a copy of the docket sheet that reflects all filings to date. The mediator may specify those documents in the case that the mediator wishes to review for the mediation. Unless otherwise ordered by the Court, the clerk will provide the mediator with electronic or paper copies of the requested documents.

(6) Mediation must be completed within thirty (30) days, but the mediator may extend the time to complete the mediation for a period up to forty-five (45) days from the date of the order of referral. Any continuance of the session beyond forty-five (45) days must be approved by the Court.

(7) Debtor must pay a mediation fee of $125.00 to the appointed mediator. Mortgage Creditor (or, if applicable, Substituted Creditor) must also pay $125.00 to the appointed mediator. Neither fee is refundable under any circumstances.

(f) *The Mediation Process.*

(1) Not later than seven (7) days before the scheduled mediation session, debtor and Mortgage Creditor (or, if applicable, Substituted Creditor) must each deliver or send by facsimile or email to the mediator and the opposing party a mediation conference memorandum no longer than two (2) pages, summarizing the status of the loss mitigation process.

(2) The memoranda required by this subdivision are solely for use in the mediation process and are not to be filed with the clerk.

(g) *The Mediation Session.*

(1) The mediation session must take place on the date and at the time set by the mediator. The mediation session must take place at a neutral setting as designated by the mediator that may include the mediator's office. A party must not contact or forward any document to the mediator unless the mediator requests the information or unless as otherwise provided under these rules.

(2) Debtor must appear in person at the mediation session with counsel, unless unrepresented. Counsel for Mortgage Creditor (or, if applicable, Substituted Creditor) who is primarily responsible for the case must appear in person. A representative of Mortgage Creditor (or, if applicable, Substituted Creditor) must be available by phone for the mediation session. The participants must be prepared to discuss:

(A) the status of the loss mitigation process; and

(B) the position of the parties relative to settlement.

(3) Unless otherwise provided in this rule, and as may be necessary to the reporting or processing of complaints about unlawful or unethical conduct, nothing communicated during the mediation process - including any oral or written statement made by a party, attorney, or other participant, and any proposed settlement figure stated by the mediator or on behalf of any party - may be placed in evidence, made known to the trial Court or jury, or construed for any purpose as an admission. No party may be bound by anything done or said during the mediation process except to enforce a settlement agreement or any other agreement achieved in that process.

(4) In the event the mediator determines that no settlement is likely to result from the mediation session, the mediator must terminate the session and promptly send a report to the Court that there has been compliance with the requirements of L.B.R. 9019-3(g), but that no resolution has been reached. In the event that a settlement is achieved at the mediation session, the mediator must send a written report to the Court stating that a settlement has been reached.

(5) Notwithstanding the above paragraph, the mediator must submit a written report to the Court describing the status of the mediation no later than thirty (30) days after the completion of the mediation session.

(6) No one may have a recording or transcript made of the mediation session, including the mediator, unless otherwise agreed to by the parties.

(7) The mediator cannot be called as a witness at trial.

(h) *Compensation and Expenses of Mediators.* A mediator who accepts a case for mediation initially will receive a total of $250.00 from the parties for up three (3) hours of actual mediation services for time expended to prepare and conduct a mediation conference or conferences. After completion of three (3) hours' service, the mediator may either

(1) continue to volunteer the mediator's time; or

(2) give the mediation parties the option to agree to pay the mediator his prevailing hourly rate for bankruptcy services for the additional time spent on the mediation. The parties must each pay a pro rata share of the mediator's compensation, unless they agree among themselves to a different allocation. A motion to enforce a party's obligation to compensate a mediator is governed by F.R.B.P. 9014.

(i) *Frequency of Service.* An individual certified as a mediator will not be called upon more than four (4) times in a twelve (12) month period to serve as a mediator under the MMM Program without the prior approval of the mediator.

(j) *MMM Program Results.*

(1) If the MMM Program is successful, Mortgage Creditor (or, if applicable, Substituted Creditor) will file a motion to approve final modification with a copy of the modification agreement.

(2) When debtor's primary residence remains property of the estate, notice of the filing of the motion to approve final modification must be provided to creditors and parties in interest. Such notice must be provided by Mortgage Creditor (or, if applicable, Substituted Creditor). A passive notice, pursuant to L.B.R. 2002-1(a), is required allowing a twenty-one (21) day objection period. A certificate of mailing evidencing compliance with this notice provision must be filed within seven (7) days following the date of the notice.

(3) If the MMM Program is unsuccessful and no loan modification is agreed to by the parties, debtor must file an amended/modified chapter 13 plan within twenty-one (21) days to address the pre-petition mortgage arrears and any post-petition arrears that may have accrued as a result of the reduced monthly payments. If an amended/modified chapter 13 plan is not timely filed,

Mortgage Creditor (or, if applicable, Substituted Creditor) may file a motion for relief from the automatic stay.

(4) If within one hundred and twenty (120) days from the entry of the Participation Order, neither a motion to approve loan modification nor an amended/modified chapter 13 plan to address Mortgage Creditor's lien has been filed, debtor must file and serve a Loss Mitigation Status Report with an attached printout of the current and complete account history from the Portal. If the parties opted not to use the Portal, the Loss Mitigation Status Report must include a history of the loss mitigation review process along with the outcome of same. Such Status Report is to be filed on the bankruptcy docket and, if applicable, in the Portal. The obligation to timely file a Loss Mitigation Status Report applies in all cases in the MMM Program unless the bankruptcy case has been dismissed or converted prior to the time for filing the Status Report, in which case no report is required. Upon the motion of any party, or on its own initiative, the Court may set a hearing on the Status Report.

(k) *Relationship to Other Procedures.* Nothing in this rule modifies the provisions of F.R.C.P. 16 and 26, or L.B.R. 7016-1 or any order of Court, nor does it preclude the use of any kind of mediation outside of the mediation process established by this rule or the use of any other means of alternative dispute resolution.

COMMENTS: *L.B.R. 9019-3 was amended effective June 1, 2016, in part, to provide for optional use of a Portal to upload and exchange documents which will facilitate the mortgage modification process.*

Rule 9023-1 *Motions for Reconsideration.*

A motion for reconsideration must be filed within fourteen (14) days after the entry of the judgment, order, or decree concerned.

Rule 9023-2 *Post-Trial Motions.*

(a) *Post-Trial Motions to be Written.* All motions after trial must be written and must contain a certification by counsel for the movant that he or she has sought concurrence in the motion from each party and that it has been either given or denied.

(b) *Documents Supporting Post-Trial Motions.* When allegations of fact not of record are relied upon in support of a motion, all pertinent affidavits, transcripts of depositions, and other documents must accompany the motion whenever practicable. In any event, such supporting documents must be filed within fourteen (14) days after the motion has been filed, unless otherwise ordered by the Court. Affidavits in support of a motion for new trial must be served with the motion as required by Fed.R.Civ.P. 59(c).

(c) *Grounds*. Post-trial motions must state with particularity any trial errors alleged as grounds for relief.

(d) *Post-Trial Brief of Moving Party.* The brief of the moving party must be filed within fourteen (14) days after the filing of the motion, unless, upon motion and for good cause shown, the Court directs otherwise. If a supporting legal brief is not filed within the time provided, the motion may be deemed to be withdrawn.

(e) *Post-Trial Brief of Respondent.* The brief of the respondent must be filed within fourteen (14) days after service of the brief of the moving party, unless, upon motion and for good cause shown, the Court directs otherwise. If a responsive legal brief is not filed within the time provided herein, the respondent may be deemed not to oppose such motion.

(f) *After-Discovered Evidence.* A motion for a new trial on the ground of after-discovered evidence must, in addition to all other requirements, be accompanied by the affidavits of the witnesses relied upon, stating the substance of their testimony and the reasons why it could not have been introduced at trial.

(g) *Disposal of Post-Trial Motions.* Notwithstanding the deadlines set forth in this rule, the Court may summarily dispose of post-trial motions at any time during their pendency.

Rule 9024-1 *Relief from Judgment or Order.*

A motion filed under F.R.B.P. 9024 is governed by the provisions of L.B.R. 9023-1.

Rule 9029-1 *Attorney Advisory Committee.*

The Court will appoint a committee of attorneys who regularly practice in the Bankruptcy Court for the Middle District of Pennsylvania to advise the Court on issues identified by the Court and by the members of the bar.

(a) *Membership.* The committee consists of the judges of the Court, the Assistant United States trustee for the District, or his or her designee, the chapter 13 trustee, or his or her designee, the President of the Middle District Bankruptcy Bar Association, or his or her designee, the Chair of the Middle District Bankruptcy Bar Association Rules Committee, and eight (8) attorneys who are engaged in bankruptcy practice in the District and who represent the diverse interests of the District. The bankruptcy attorney members of the committee will be appointed by the Chief Judge after consultation with the other judge(s) of the Court and the President of the Middle District Bankruptcy Bar Association. The names of the committee members will be posted on the Court's website (www.pamb.uscourts.gov). The Clerk, or his or her designee, will serve as the secretary of the committee, and may invite staff to attend the meetings to facilitate the discussion of agenda items.

(b) *Term of Office.* Each bankruptcy attorney member of the committee will serve a three (3) year term, beginning January 1 of each year. In the event of a vacancy on the committee, the Chief Judge will select a bankruptcy attorney to fill the vacancy for the remainder of the term.

(c) *Meetings.* The committee will meet quarterly or as otherwise determined by the Chief Judge. All minutes of the committee meetings will be posted on the Court's website (www.pamb.uscourts.gov).

(d) *Duties.* The committee will advise the Court on matters of Court administration and serve as a liaison between the bankruptcy bar and the Court on administrative matters. The committee, or designated subcommittees thereof, will make any studies and render any reports and recommendations requested by the Court. The committee, or designated subcommittees thereof, will recommend amendments to the Local Bankruptcy Rules and Forms.

Rule 9037-1 *Redaction of Personal Identifiers in Filings Made with the Court.*

(a) *Responsibility for Redaction.* The clerk is not responsible for reviewing documents filed to ensure compliance with F.R.B.P. 9037. Unless the Court orders otherwise, the clerk is not required to redact any pleadings or documents filed in violation of F.R.B.P. 9037.

(b) *Request to Redact.* A redaction request should be made using the Court's Application Requesting Redaction of Personal Information form (L.B.F. 9037-1). The request must include the applicable redaction fee, unless the Court has granted a waiver of the fee.

Rule 9070-1 *Exhibits.*

(a) *Paper Exhibits.* A complete copy of the exhibits must be provided to all parties at least three (3) days prior to the trial or hearing, and to the Court at the time of trial or hearing, unless otherwise ordered by the Court. This requirement applies only to exhibits used in a party's case in chief and not to exhibits used for purposes of impeachment or rebuttal. Failure to timely exchange proposed exhibits in accordance with this rule may result in the Court barring the admissions of any unexchanged exhibits. Whenever the number of exhibits in any case to be presented at hearing or trial by either party exceeds fifteen (15), the party intending to offer such exhibits must tab, number, and index them in a binder.

(b) *Electronic Exhibits*. Any attorney or pro se party who wishes to electronically submit and display exhibits may do so by:

(1) placing on the docket a notice of intention to present evidence electronically at the hearing. CM/ECF users may make a virtual entry of Notice Counsel Will Present Evidence Electronically at the Hearing;

(2) pre-marking all electronic exhibits by using the file naming conventions specified in the Court's Electronic Evidence Presentation System Procedures (these are available on the Court's website, www.pamb.uscourts.gov);

(3) subject to the exceptions stated in this rule, the presiding judge's "Judicial Practices and Procedures" (which are available on the Court's website, www.pamb.uscourts.gov) or a showing of good cause, uploading all electronic exhibits into the Cloud Evidence System ("CES") at least three (3) days before the hearing/trial;

(4) sharing a copy of all electronic exhibits with opposing counsel/parties at least three days prior to the hearing/trial; and

(5) complying with the technical requirements specified in the Electronic Evidence Presentation System Procedures.

The requirement to upload and share exhibits three (3) days prior to hearing/trial applies only to exhibits used in a party's case in chief and not to exhibits used for purposes of impeachment or rebuttal. Failure to timely upload and/or exchange proposed exhibits in accordance with this rule may result in the Court barring the admission of any such exhibits.

Rule 9070-2 *Exhibits After Final Judgment.*

Fourteen (14) days after entry of final, non-appealable judgment, each party is responsible for retrieving any exhibits, models, diagrams, or other physical evidence introduced at trial or hearing. If exhibits are not retrieved within the required time period, the clerk may dispose of the items without notice.

Rule 9071-1 *Stipulations.*

Any proposed order requesting approval of a stipulation must be submitted as a separate document.

Rule 9073-1 *Hearings.*

(a) *Testimony of Witnesses.* Unless otherwise directed, all hearings and trials are evidentiary in nature at which witnesses may testify.

(b) *Contested Matters - Procedure*.

(1) *Hearing.* Upon the filing of a motion, the clerk will set a date by which an answer or other responsive pleading must be filed. If a responsive pleading is not filed by the answer date, the Court may grant the relief requested subject to the limitations of F.R.B.P. 9006(f). Except as otherwise provided in these rules, no hearing date on the motion will be set.

(2) *Motions.* Notwithstanding the language of paragraph (1), hearings are required and will be set on the following motions:

(A) for relief under 11 U.S.C. § 362(k);

(B) for sanctions under F.R.B.P. 9011;

(C) for contempt;

(D) to substantively consolidate under L.B.R. 1015-1(b);

(E) to dismiss the case with prejudice, including all motions filed pursuant to 11 U.S.C. § 109; and

(F) to disqualify counsel.

(3) *Approval of Sales of Property Free and Clear of Liens.* While not required in the absence of a responsive pleading, at the request of the movant, a hearing will be held regarding a motion for approval of sales of property free and clear of liens under L.B.R. 6004-5(c).

Rule 9074-1 *Remote Appearance and Witness Testimony.*

(a) *Remote Appearance Procedure*. An attorney or self-represented party may not participate in a matter remotely unless such appearance is allowed under the presiding Judge's practices and procedures. If remote participation is allowed, compliance with the "Remote Appearance Guide" located on the Court's website (www.pamb.uscourts.gov) is required.

(b) *Request for Witness Testimony by Remote Appearance.* A request to present testimony by remote appearance must allege cause and be filed with the Court at least seven (7) days before the scheduled hearing. Requests must include a completed Certificate of Concurrence/Nonconcurrence form (L.B.F. 9074-1).

Rule 9075-1 *Emergency Orders.*

(a) *General Procedure.* A party seeking emergency relief or an immediate hearing date must:

(1) file a motion for expedited consideration that:

(i) contains the phrase "Expedited Consideration" in the caption;

(ii) attaches the underlying pleading for which emergency relief is sought as an exhibit;

(iii) explains why expedited consideration is necessary;

(iv) contains a certificate of service which, for each interested party that does not receive notice through the CM/ECF system, identifies the email address, facsimile number, or other form of notice where such interested party received a copy of the motion and exhibit; and

(v) contains a proposed order granting the motion for expedited consideration and stating how service of the order and underlying pleading will be accomplished on interested parties that are not CM/ECF filers;

(2) immediately after the motion for expedited consideration has been filed, provide email notification of the motion to the chambers of the assigned judge; and

(3) if the Court grants the motion for expedited consideration, immediately file the underlying pleading with the hearing date included.

APPENDIX 2016-1
PROJECT CATEGORIES

ASSET ANALYSIS AND RECOVERY: Identification and review of potential assets including causes of action and non-litigation recoveries.

ASSET DISPOSITION: Sales, leases (§365 matters), abandonment, and related transaction work.

BUSINESS OPERATIONS: Issues related to debtor-in-possession operating in chapter 11 such as employee, vendor, tenant issues, and other similar problems.

CASE ADMINISTRATION: Coordination and compliance activities, including preparation of statement of financial affairs; schedules; list of contracts; United States trustee interim statements and operating reports; contacts with the United States trustee; general creditor inquiries.

CLAIMS ADMINISTRATION AND OBJECTIONS: Specific claim inquiries; bar date motions; analyses, objections, and allowances of claims.

EMPLOYEE BENEFITS/PENSIONS: Review issues such as severance, retention, 401K coverage, and continuance of pension plan.

FEE/EMPLOYMENT APPLICATIONS: Preparations of employment and fee applications for self or others; motions to establish interim procedures.

FEE/EMPLOYMENT OBJECTIONS: Review of and objections to the employment and fee applications of others.

FINANCING: Matters under 11 U.S.C. §§ 361, 363 and 364 including cash collateral and secured claims; loan document analysis.

LITIGATION: There should be a separate category established for each matter (i.e., XYZ Litigation).

MEETINGS OF CREDITORS: Preparing for and attending the conference of creditors, the 11 U.S.C. § 341(a) meeting, and other creditors' committee meetings.

PLAN AND DISCLOSURE STATEMENT: Formulation, presentation, and confirmation; compliance with the plan confirmation order, related orders, and rules; disbursement and case closing activities, except those related to the allowance and objections to allowance of claims.

RELIEF FROM STAY PROCEEDINGS: Matters relating to termination or continuation of automatic stay under 11 U.S.C. § 362.

The following categories are generally more applicable to accountants and financial advisors, but may be used by all professionals as appropriate.
ACCOUNTING/AUDITING: Activities related to maintaining and auditing books of account, preparation of financial statements, and account analysis.

BUSINESS ANALYSIS: Preparation and review of company business plan; development and review of strategies; preparation and review of cash flow forecasts and feasibility studies.

CORPORATE FINANCE: Review financial aspects of potential mergers, acquisitions, and disposition of company or subsidiaries.

DATA ANALYSIS: Management information systems review, installation and analysis, construction, maintenance and reporting of significant case financial data, lease rejection, claims, etc.

LITIGATION CONSULTING: Providing consulting and expert witness services relating to various bankruptcy matters such as insolvency, feasibility, avoiding actions, forensic accounting, etc.

RECONSTRUCTION ACCOUNTING: Reconstructing books and records from past transactions and bringing accounting current.

TAX ISSUES: Analysis of tax issues and preparation of state and federal tax returns.

VALUATION: Appraise or review appraisals of assets.